

Authorised Version No. 153

Bail Act 1977

No. 9008 of 1977

Authorised Version incorporating amendments as at
2 December 2024

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An Act to make better Provision relating to Bail and to amend the **Children's Court Act 1973**, the **Coroners Act 1958**, the **Crimes Act 1958**, the **Crown Proceedings Act 1958**, the **Summary Offences Act 1966**, the **Magistrates (Summary Proceedings) Act 1975**, and the **Rape Offences (Proceedings) Act 1976**.

BE IT ENACTED by the Queen's Most Excellent Majesty by and with the advice and consent of the Legislative Council and the Legislative Assembly of Victoria in this present Parliament assembled and by the authority of the same as follows (that is to say):

Part 1—Preliminary

1 Short title and commencement

- (1) This Act may be cited as the **Bail Act 1977**.
- (2) The several provisions of this Act shall come into operation on a day or the respective days to be fixed by proclamation or successive proclamations of the Governor in Council published in the Government Gazette.

1A Purpose

The purpose of this Act is to provide a legislative framework for the making of decisions as to whether a person accused of an offence should be granted bail, with or without conditions, or remanded in custody.

Pt 1 (Heading)
inserted by
No. 70/2010
s. 3.

S. 1A
inserted by
No. 26/2017
s. 3.

S. 1B
inserted by
No. 26/2017
s. 3.

1B Guiding principles

- (1) The Parliament recognises the importance of—
 - (a) maximising the safety of the community and persons affected by crime to the greatest extent possible; and
 - (b) taking account of the presumption of innocence and the right to liberty; and
 - (c) promoting fairness, transparency and consistency in bail decision making; and
 - (d) promoting public understanding of bail practices and procedures.
- (2) It is the intention of the Parliament that this Act is to be applied and interpreted having regard to the matters set out in subsection (1).

2 Repeals and savings

- (1) The Acts mentioned in the Schedule to the extent thereby expressed to be repealed or amended are hereby repealed or amended accordingly.
- (2) Except as in this Act expressly or by necessary implication provided—
 - (a) all persons things and circumstances appointed existing or continuing under any such Acts immediately before the commencement of this Act, shall under and subject to this Act continue to have the same status operation and effect as they respectively would have had if such Acts had not been so repealed or amended;
 - (b) in particular and without affecting the generality of the foregoing paragraph, such repeal or amendment shall not disturb the continuity of status operation or effect of any application determination order warrant recognizance affidavit declaration certificate

liability or right made effected issued
granted given entered into fixed accrued
incurred or acquired or existing or
continuing by or under such Acts before the
commencement of this Act.

3 Definitions

In this Act unless inconsistent with the context or
subject-matter—

Aboriginal bail support service means a bail
support service that is provided by an entity
that—

S. 3 def. of
*Aboriginal bail
support
service*
inserted by
No. 28/2023
s. 31.

- (a) is managed by Aboriginal people; or
- (b) operates for the benefit of Aboriginal
people;

Aboriginal person means a person who—

S. 3 def. of
*Aboriginal
person*
inserted by
No. 70/2010
s. 4(1),
amended by
No. 28/2023
s. 111.

- (a) is descended from an Aboriginal or
Torres Strait Islander; and
- (b) identifies as an Aboriginal or Torres
Strait Islander; and
- (c) is accepted as an Aboriginal or Torres
Strait Islander by an Aboriginal or
Torres Strait Island community;

bail decision maker means any of the following
empowered under this Act to grant bail,
extend bail, vary the amount of bail or the
conditions of bail or revoke bail—

S. 3 def. of
*bail decision
maker*
inserted by
No. 26/2017
s. 4(1),
amended by
Nos 26/2017
s. 15(1),
3/2018 s. 3(1).

- (a) a court;
- (b) a bail justice;
- (c) a police officer;
- (d) the sheriff or a person authorised under
section 115(5) of the **Fines Reform
Act 2014**;

S. 3 def. of *bail guarantee* inserted by No. 28/2023 s. 42.

bail guarantee means an undertaking, given by one or more persons, to pay a specified amount if there is—

- (a) a failure to comply with a bail undertaking or an undertaking given under section 16B (as the case requires); or
- (b) a failure to comply with a condition of the grant of bail in respect of which the undertaking referred to in paragraph (a) was given;

S. 3 def. of *bail guarantor* inserted by No. 28/2023 s. 42.

bail guarantor means a person who gives a bail guarantee;

S. 3 def. of *bail justice* inserted by No. 51/1989 s. 142(a), substituted by No. 35/2002 s. 25(1), amended by No. 70/2010 s. 4(2), repealed by No. 32/2014 s. 56.

* * * * *

S. 3 def. of *bail support service* inserted by No. 44/2013 s. 3, amended by No. 28/2023 s. 71.

bail support service means a service provided to assist an accused to comply with the accused's bail undertaking (whether or not that type of service is also provided to persons other than an accused on bail) including, but not limited to—

- (a) bail support programs;
- (b) medical treatment;

- (c) counselling services or treatment services for substance abuse or other behaviour which may lead to commission of offences;
- (d) counselling, treatment, support or assistance services for one or more of the following—
 - (i) a mental illness;
 - (ii) an intellectual disability;
 - (iii) an acquired brain injury;
 - (iv) autism spectrum disorder;
 - (v) a neurological impairment, including, but not limited to, dementia;
- (e) services to help resolve homelessness;

bail undertaking means an undertaking given under section 5(1);

S. 3 def. of *bail undertaking* inserted by No. 28/2023 s. 90(1).

child has the same meaning as in the **Children, Youth and Families Act 2005**;

S. 3 def. of *child* inserted by No. 1/2016 s. 9.

* * * * *

S. 3 def. of *cocaine* inserted by No. 89/1986 s. 4(a), repealed by No. 64/1998 s. 4.

conduct condition means a condition of bail imposed under section 5AAA(4);

S. 3 def. of *conduct condition* inserted by No. 44/2013 s. 3, amended by No. 26/2017 s. 4(2)(a).

S. 3 def. of
court
amended by
Nos 19/1989
s. 16(Sch.
item 7.1),
51/1989
s. 142(b),
37/2014
s. 10(Sch.
item 8.1(b)),
repealed by
No. 26/2017
s. 4(2)(b).

S. 3 def. of
*drug of
dependence*
inserted by
No. 89/1986
s. 4(b).

S. 3 def. of
*electronic
signature*
inserted by
No. 11/2021
s. 24.

S. 3 def. of
*family
violence*
inserted by
No. 26/2017
s. 4(1).

S. 3 def. of
*family
violence
intervention
order*
inserted by
No. 26/2017
s. 4(1).

* * * * *

drug of dependence has the same meaning as in
the **Drugs, Poisons and Controlled
Substances Act 1981**;

electronic signature includes, but is not limited
to—

- (a) a person confirming their agreement by
electronically selecting an option
indicating affirmation; or
- (b) a person providing a scanned or
photographed copy of a document
signed by hand;

family violence has the same meaning as in the
Family Violence Protection Act 2008;

family violence intervention order has the
same meaning as in the **Family Violence
Protection Act 2008**;

family violence offence means—

- (a) an offence against section 37(2), 37A(2), 123(2), 123A(2) or 125A(1) of the **Family Violence Protection Act 2008**; or
- (b) an offence where the conduct of the accused is family violence;

S. 3 def. of *family violence offence* inserted by No. 26/2017 s. 4(1).

family violence safety notice has the same meaning as in the **Family Violence Protection Act 2008**;

S. 3 def. of *family violence safety notice* inserted by No. 26/2017 s. 4(1).

legal practitioner means an Australian legal practitioner;

S. 3 def. of *legal practitioner* inserted by No. 18/2005 s. 18(Sch. 1 item 9), amended by No. 17/2014 s. 160(Sch. 2 item 10).

* * * * *

S. 3 def. of *heroin* inserted by No. 89/1986 s. 4(b), repealed by No. 64/1998 s. 4.

parent has the same meaning as in the **Children, Youth and Families Act 2005**;

S. 3 def. of *parent* inserted by No. 1/2016 s. 9.

police officer has the same meaning as in the **Victoria Police Act 2013**;

S. 3 def. of *police officer* inserted by No. 37/2014 s. 10(Sch. item 8.1(a)).

S. 3 def. of
prison
amended by
Nos 10087
s. 3(1)(Sch. 1
item 4),
16/1987
s. 4(3)(Sch. 1
item 3),
56/1989
s. 286(Sch. 2
item 2.1),
48/2006
s. 42(Sch.
item 4.1).

prison includes remand centre or youth justice centre under the **Children, Youth and Families Act 2005** and any other place where persons may be detained in legal custody and ***imprisonment*** has a corresponding interpretation;

S. 3 def. of
prosecutor
inserted by
No. 3/2018
s. 3(2).

prosecutor, in relation to an application under this Act, includes the informant, a police prosecutor and any other person appearing on behalf of the Crown;

S. 3 def. of
recognised DVO
inserted by
No. 26/2017
s. 16(1).

recognised DVO has the same meaning as in the **Family Violence Protection Act 2008**;

S. 3 def. of
Schedule 1 offence
inserted by
No. 26/2017
s. 4(2)(c).

Schedule 1 offence means an offence specified in Schedule 1 and, if circumstances are specified in Schedule 1 in relation to that offence, means an offence committed in those circumstances;

S. 3 def. of
Schedule 2 offence
inserted by
No. 26/2017
s. 4(2)(c).

Schedule 2 offence means an offence specified in Schedule 2 and, if circumstances are specified in Schedule 2 in relation to that offence, means an offence committed in those circumstances;

S. 3 def. of
section 17 notice
inserted by
No. 11/2021
s. 24.

section 17 notice means the written notice of conditions of bail required by section 17;

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*	*	*	*	*	S. 3 def. of <i>serious offence</i> inserted by No. 1/2016 s. 6, repealed by No. 3/2018 s. 23(1).
<i>step 1—exceptional circumstances test—</i> see section 4A;					S. 3 def. of <i>step 1—exceptional circumstances test</i> inserted by No. 28/2023 s. 29.
<i>step 1—show compelling reason test—</i> see section 4B;					S. 3 def. of <i>step 1—show compelling reason test</i> inserted by No. 28/2023 s. 29.
<i>step 1 test</i> means— (a) the step 1—exceptional circumstances test; or (b) the step 1—show compelling reason test;					S. 3 def. of <i>step 1 test</i> inserted by No. 28/2023 s. 29.
<i>step 2—unacceptable risk test—</i> see section 4D;					S. 3 def. of <i>step 2—unacceptable risk test</i> inserted by No. 28/2023 s. 29.
<i>surrounding circumstances—</i> see section 3AAA;					S. 3 def. of <i>surrounding circumstances</i> inserted by No. 3/2018 s. 3(2).

S. 3 def. of
*terrorism or
foreign
incursion
offence*
inserted by
No. 32/2018
s. 80(1).

terrorism or foreign incursion offence means an offence against—

- (a) section 4B of the **Terrorism (Community Protection) Act 2003**; or
- (b) a provision of another State or a Territory that corresponds to section 4B of the **Terrorism (Community Protection) Act 2003**; or
- (c) a provision of Subdivision A of Division 72 of Chapter 4 of the Criminal Code of the Commonwealth; or
- (d) a provision of Part 5.3 or 5.5 of the Criminal Code of the Commonwealth; or
- (e) a provision of the Crimes (Foreign Incursions and Recruitment) Act 1978 of the Commonwealth as in force before its repeal;

S. 3 def. of
*terrorism
record*
inserted by
No. 32/2018
s. 80(1).

terrorism record—see section 3AAB;

S. 3 def. of
*terrorism-
related order*
inserted by
No. 32/2018
s. 80(1).

terrorism-related order means—

- (a) a control order within the meaning of Part 5.3 of the Criminal Code of the Commonwealth; or
- (b) a continuing detention order within the meaning of Division 105A of Part 5.3 of the Criminal Code of the Commonwealth; or
- (c) an interim detention order within the meaning of Division 105A of Part 5.3 of the Criminal Code of the Commonwealth; or

- (d) a preventative detention order within the meaning of Part 2A of the **Terrorism (Community Protection) Act 2003**; or
- (e) a prohibited contact order within the meaning of Part 2A of the **Terrorism (Community Protection) Act 2003**; or
- (f) an order made under a corresponding preventative detention law within the meaning of Part 2A of the **Terrorism (Community Protection) Act 2003**;
- terrorism risk information***—see section 3AAC; S. 3 def. of *terrorism risk information* inserted by No. 32/2018 s. 80(1).
- terrorist act*** has the same meaning as in the **Terrorism (Community Protection) Act 2003**; S. 3 def. of *terrorist act* inserted by No. 1/2016 s. 3.
- terrorist organisation*** has the same meaning as in Division 102 of the Criminal Code of the Commonwealth; S. 3 def. of *terrorist organisation* inserted by No. 1/2016 s. 3, substituted by No. 32/2018 s. 80(2).
- unacceptable risk test***—see section 4E; S. 3 def. of *unacceptable risk test* inserted by No. 3/2018 s. 3(2).

S. 3 def. of *undertaking* amended by No. 68/2009 s. 97(Sch. items 11.1, 11.2), substituted by No. 26/2017 s. 4(2)(d), amended by No. 3/2018 s. 3(3), repealed by No. 28/2023 s. 90(2).

S. 3 def. of *vulnerable adult* inserted by No. 3/2018 s. 3(2).

* * * *

vulnerable adult—see section 3AAAA.

S. 3AAAA inserted by No. 3/2018 s. 4.

3AAAA Meaning of *vulnerable adult*

- (1) For the purposes of this Act, a person is a ***vulnerable adult*** if the person is 18 years of age or more and has a cognitive, physical or mental health impairment that causes the person to have difficulty in—
 - (a) understanding their rights; or
 - (b) making a decision; or
 - (c) communicating a decision.
- (2) A bail decision maker may consider a person to be a vulnerable adult even if the bail decision maker cannot identify the particular impairment referred to in subsection (1).

S. 3AAA inserted by No. 3/2018 s. 5, amended by No. 32/2018 s. 81(1)(2) (ILA s. 39B(1)).

3AAA Surrounding circumstances

- (1) If this Act provides, in relation to a matter, that a bail decision maker must take into account the surrounding circumstances, the bail decision maker must take into account all the

circumstances that are relevant to the matter including, but not limited to, the following—

- (aa) whether, if the accused were found guilty of the offence with which the accused is charged, it is likely—
 - (i) that the accused would be sentenced to a term of imprisonment; and
 - (ii) if so, that the time the accused would spend remanded in custody if bail is refused would exceed that term of imprisonment;
- (a) the nature and seriousness of the alleged offending, including whether it is a serious example of the offence;
- (b) the strength of the prosecution case;
- (c) the accused's criminal history;
- (d) the extent to which the accused has complied with the conditions of any earlier grant of bail;
- (e) whether, at the time of the alleged offending, the accused—
 - (i) was on bail for another offence; or
 - (ii) was subject to a summons to answer to a charge for another offence; or
 - (iii) was at large awaiting trial for another offence; or
 - (iiia) was on remand for another offence; or
 - (iiib) was at large awaiting sentence for another offence; or

S. 3AAA
(1)(aa)
inserted by
No. 28/2023
s. 36.

S. 3AAA
(1)(e)(iiia)
inserted by
No. 28/2023
s. 37.

S. 3AAA
(1)(e)(iiib)
inserted by
No. 28/2023
s. 37.

- (iv) was released under a parole order; or
- (v) was subject to a community correction order made in respect of, or was otherwise serving a sentence for, another offence;
- (f) whether there is in force—
 - (i) a family violence intervention order made against the accused; or
 - (ii) a family violence safety notice issued against the accused; or
 - (iii) a recognised DVO made against the accused;
- (g) the accused's personal circumstances, associations, home environment and background;
- (h) any special vulnerability of the accused, including—
 - (i) being an Aboriginal person; or
 - (ii) being a child; or
 - (iii) experiencing any ill health, including mental illness; or
 - (iv) having a disability, including physical disability, intellectual disability and cognitive impairment;

S. 3AAA(1)(h)
substituted by
No. 28/2023
s. 38.

Note

The bail decision maker is required to take certain issues into account if the accused is an Aboriginal person—see section 3A. Further, the bail decision maker is required to take certain issues into account if the accused is a child—see section 3B. The bail decision maker is required to take all these issues into account if the accused is both an Aboriginal person and a child.

- (i) the availability of treatment or bail support services;

Note

If the accused is an Aboriginal person, see also section 5AAA(4A).

**Note to
s. 3AAA(1)(i)
inserted by
No. 28/2023
s. 32.**

- (j) any known view or likely view of an alleged victim of the offending on the grant of bail, the amount of bail or the conditions of bail;
- (k) the length of time the accused is likely to spend in custody if bail is refused;
- (l) the likely sentence to be imposed should the accused be found guilty of the offence with which the accused is charged;
- (m) whether the accused has expressed support for—
- (i) the doing of a terrorist act; or
 - (ii) a terrorist organisation; or
 - (iii) the provision of resources to a terrorist organisation;
- (n) subject to subsection (2), whether the accused has, or has had, an association with—
- (i) another person or a group that has expressed support of the kind referred to in paragraph (m); or
 - (ii) another person or a group that is directly or indirectly engaged in, preparing for, planning, assisting in or fostering the doing of a terrorist act; or
 - (iii) a terrorist organisation.

**S. 3AAA(1)(m)
substituted by
No. 32/2018
s. 81(1).**

**S. 3AAA(1)(n)
inserted by
No. 32/2018
s. 81(1).**

S. 3AAA(2)
inserted by
No. 32/2018
s. 81(2).

- (2) A bail decision maker must not take into account the accused having, or having had, an association referred to in subsection (1)(n)(i), (ii) or (iii) unless the bail decision maker is satisfied that the accused knew—
- (a) that the person or group had expressed support for—
 - (i) the doing of a terrorist act; or
 - (ii) a terrorist organisation; or
 - (iii) the provision of resources to a terrorist organisation; or
 - (b) that the person or group was directly or indirectly engaged in, preparing for, planning, assisting in or fostering the doing of a terrorist act; or
 - (c) that the group was a terrorist organisation.

S. 3AA
inserted by
No. 3/2018
s. 5.

3AA Offence that is both a Schedule 1 and a Schedule 2 offence

For the purposes of this Act, an offence that is both a Schedule 1 offence and a Schedule 2 offence must be taken to be a Schedule 1 offence.

S. 3AAB
inserted by
No. 32/2018
s. 82.

3AAB Meaning of *terrorism record*

For the purposes of this Act, a person has a ***terrorism record*** if the person—

- (a) has been convicted of a terrorism or foreign incursion offence; or
- (b) is or has been subject to a terrorism-related order.

3AAC Meaning of *terrorism risk information*

S. 3AAC
inserted by
No. 32/2018
s. 82.

- (1) For the purposes of this Act, ***terrorism risk information*** in respect of a person means—
- (a) an assessment made by an entity specified in subsection (2) that there is a risk that the person will commit a terrorism or foreign incursion offence; and
 - (b) the information relied on in making that assessment.
- (2) The specified entities are—
- (a) the Australian Crime Commission
(by whatever name described) established by the Australian Crime Commission Act 2002 of the Commonwealth; and
 - (b) Victoria Police; and
 - (c) the Australian Federal Police; and
 - (d) the Australian Security and Intelligence Organisation; and
 - (e) the Department of Justice and Community Safety; and
 - (f) the police force or police service of another State or a Territory; and
 - (g) the Department of Home Affairs of the Commonwealth; and
 - (h) each prescribed entity.
- (3) Without limiting subsection (1)(b), the information referred to in that provision may include—
- (a) information regarding the person having expressed support for—
 - (i) the doing of a terrorist act; or

S. 3AAC(2)(e)
amended by
No. 28/2023
s. 110(1).

- (ii) a terrorist organisation; or
- (iii) the provision of resources to a terrorist organisation; or
- (b) information regarding the person having, or having had, an association with—
 - (i) another person or a group that has expressed support of the kind referred to in paragraph (a); or
 - (ii) another person or a group that is directly or indirectly engaged in, preparing for, planning, assisting in or fostering the doing of a terrorist act; or
 - (iii) a terrorist organisation.

Note

Section 8AA(4) prevents a court from having regard to information referred to in paragraph (b) unless the court is satisfied that the person knew certain matters about the person or group that the association is with. See also section 3AAA(2).

S. 3A
inserted by
No. 70/2010
s. 5,
amended by
No. 26/2017
s. 14(1),
substituted by
No. 28/2023
s. 33.

3A Determination in relation to an Aboriginal person

- (1) In making a determination under this Act in relation to an Aboriginal person, a bail decision maker must take into account (in addition to any other requirements of this Act) any issues that arise due to the person's Aboriginality, including the following—
 - (a) the historical and ongoing discriminatory systemic factors that have resulted in Aboriginal people being over-represented in the criminal justice system, including in the remand population;
 - (b) the risk of harm and trauma that being in custody poses to Aboriginal people;

- (c) the importance of maintaining and supporting the development of the person's connection to culture, kinship, family, Elders, country and community;
- (d) any issues that arise in relation to the person's history, culture or circumstances, including the following—
 - (i) the impact of any experience of trauma and intergenerational trauma, including abuse, neglect, loss and family violence;
 - (ii) any experience of out of home care, including foster care and residential care;
 - (iii) any experience of social or economic disadvantage, including homelessness and unstable housing;
 - (iv) any ill health the person experiences, including mental illness;
 - (v) any disability the person has, including physical disability, intellectual disability and cognitive impairment;
 - (vi) any caring responsibilities the person has, including as the sole or primary parent of an Aboriginal child;
- (e) any other relevant cultural issue or obligation.

Note

If the Aboriginal person is also a child, the bail decision maker must also take into account the issues set out in section 3B(1).

- (2) The bail decision maker is to take account of an issue set out in subsection (1) by reference to the evidence and information that is reasonably available to the bail decision maker at the time, including information provided by—
 - (a) the Aboriginal person's family and community; and
 - (b) providers of Aboriginal bail support services.
- (3) Despite subsection (2), the bail decision maker is to take account of the issues set out in subsection (1)(a) to (c) whether or not any evidence or information is before the bail decision maker in respect of those issues.
- (4) The requirement to take an issue set out in subsection (1) into account applies regardless of—
 - (a) whether the person's connection to their Aboriginality and culture has been intermittent throughout their life; and
 - (b) whether the person has only recently connected to or discovered their culture or heritage; and
 - (c) when the person first discloses that they are an Aboriginal person.
- (5) If a bail decision maker refuses bail to an Aboriginal person, the bail decision maker must—
 - (a) identify the matters the bail decision maker had regard to in taking into account the issues set out in subsection (1); and
 - (b) either—
 - (i) state those matters orally when refusing bail and ensure that an audio visual recording, or an audio recording, is made of that statement; or

- (ii) record those matters in writing in a form that the bail decision maker considers appropriate.

Notes

- 1 Section 19(2) of the Charter of Human Rights and Responsibilities provides that Aboriginal persons hold distinct cultural rights and must not be denied the various rights referred to in that provision.
- 2 When considering bail for an Aboriginal person charged with a Commonwealth offence, a bail decision maker must comply with section 15AB(1)(b) of the Crimes Act 1914 of the Commonwealth.

3B Determination in relation to a child

S. 3B
inserted by
No. 1/2016
s. 10.

- (1) In making a determination under this Act in relation to a child, a bail decision maker must take into account (in addition to any other requirements of this Act) the following issues—

S. 3B(1)
amended by
No. 26/2017
s. 14(2),
substituted by
No. 28/2023
s. 35.

- (a) the child's age, maturity and stage of development at the time of the alleged offence;
- (b) the need to impose on the child the minimum intervention required in the circumstances, with the remand of the child being a last resort;
- (c) the presumption at common law that a child who is 10 years of age or over but under 14 years of age cannot commit an offence;
- (d) the need to preserve and strengthen the child's relationships with—
 - (i) the child's parents, guardian and carers; and
 - (ii) other significant persons in the child's life;

- (e) the importance of supporting the child to live at home or in safe, stable and secure living arrangements in the community;
- (f) the importance—
 - (i) of supporting the child to engage in education, or in training or work; and
 - (ii) of that engagement being subject only to minimal interruption or disturbance;
- (g) the need to minimise the stigma to the child resulting from being remanded;
- (h) the fact that time in custody has been shown to pose criminogenic and other risks for children, including—
 - (i) a risk that the child will become further involved in the criminal justice system; and
 - (ii) a risk of harm;
- (i) the need to ensure that the conditions of bail—
 - (i) are no more onerous than is necessary; and
 - (ii) do not constitute unfair management of the child;
- (j) the fact that some cohorts of children, including the following cohorts, experience discrimination resulting in that cohort's over-representation in the criminal justice system—
 - (i) Aboriginal children;
 - (ii) children involved in the child protection system;
 - (iii) children from culturally and linguistically diverse backgrounds;

- (k) whether, if the child were found guilty of the offence charged, it is likely—
 - (i) that the child would be sentenced to a term of imprisonment; and
 - (ii) if so, that the time the child would spend remanded in custody if bail is refused would exceed that term of imprisonment;
- (l) any of the following issues that arise—
 - (i) any ill health the child experiences, including mental illness;
 - (ii) any disability the child has, including physical disability, intellectual disability, cognitive impairment and developmental delay;
 - (iii) the impact on the child, and on the child's behaviour, of any experience of abuse, trauma, neglect, loss, family violence or child protection involvement, including removal from family or placement in out of home care;
- (m) any other relevant factor or characteristic.

Note

If the child is also an Aboriginal person, the bail decision maker must also take into account the issues set out in section 3A(1).

- (1A) The bail decision maker is to take account of an issue set out in subsection (1) by reference to the evidence and information that is reasonably available to the bail decision maker at the time.

S. 3B(1A)
inserted by
No. 28/2023
s. 35.

S. 3B(1B)
inserted by
No. 28/2023
s. 35.

(1B) Despite subsection (1A), the bail decision maker is to take account of the issues set out in subsection (1)(b) to (j) whether or not any evidence or information is before the bail decision maker in respect of those issues.

S. 3B(2)
amended by
No. 26/2017
s. 14(2).

(2) In making a determination under this Act in relation to a child, a bail decision maker may take into account any recommendation or information contained in a report provided by a bail support service.

(3) Bail must not be refused to a child on the sole ground that the child does not have any, or any adequate, accommodation.

S. 3C
inserted by
No. 43/2017
s. 37,
amended by
No. 3/2018
s. 23(2).

3C Determination in relation to a person of or over the age of 18 years in a remand centre

If—

- (a) the accused in a criminal proceeding in any court is of or over the age of 18 years and is in a remand centre (within the meaning of the **Children, Youth and Families Act 2005**), pursuant to a remand warrant issued when the accused was aged under 18; and
- (b) the criminal proceeding relates to one or more offences alleged to have been committed when the accused was of or over the age of 18 years—

in making a determination under this Act in relation to the accused, a bail decision maker must take into account (in addition to any other requirements of this Act)—

- (c) whether the accused has engaged in conduct that threatens the good order and safe operation of the youth remand centre; and

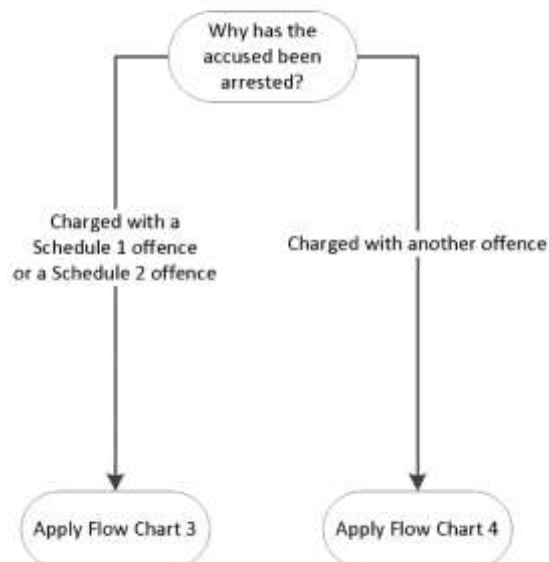
- (d) whether the accused can be properly controlled in the youth remand centre.

3D Flow Charts

- (1) A Flow Chart in this section illustrates the key features of the decision making process to which it relates. It is intended only as a guide to the reader.
- (2) Flow Chart 1 shows the process for determining which tests are to be applied in deciding whether to grant bail to a person if—
- (a) the person has a terrorism record; or
 - (b) the court considering whether to grant bail determines under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence.

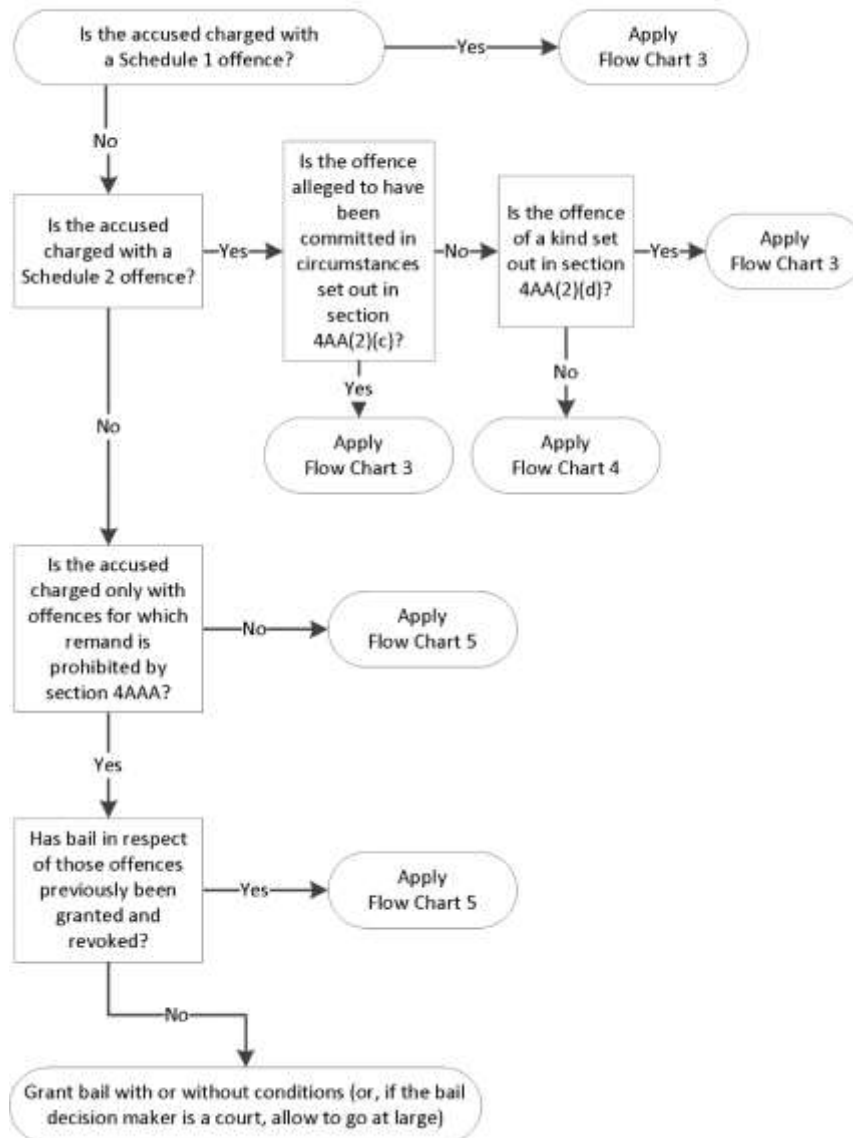
S. 3D
inserted by
No. 3/2018
s. 6,
substituted by
Nos 32/2018
s. 83, 28/2023
s. 30.

Flow Chart 1 – Terrorism record or terrorism risk



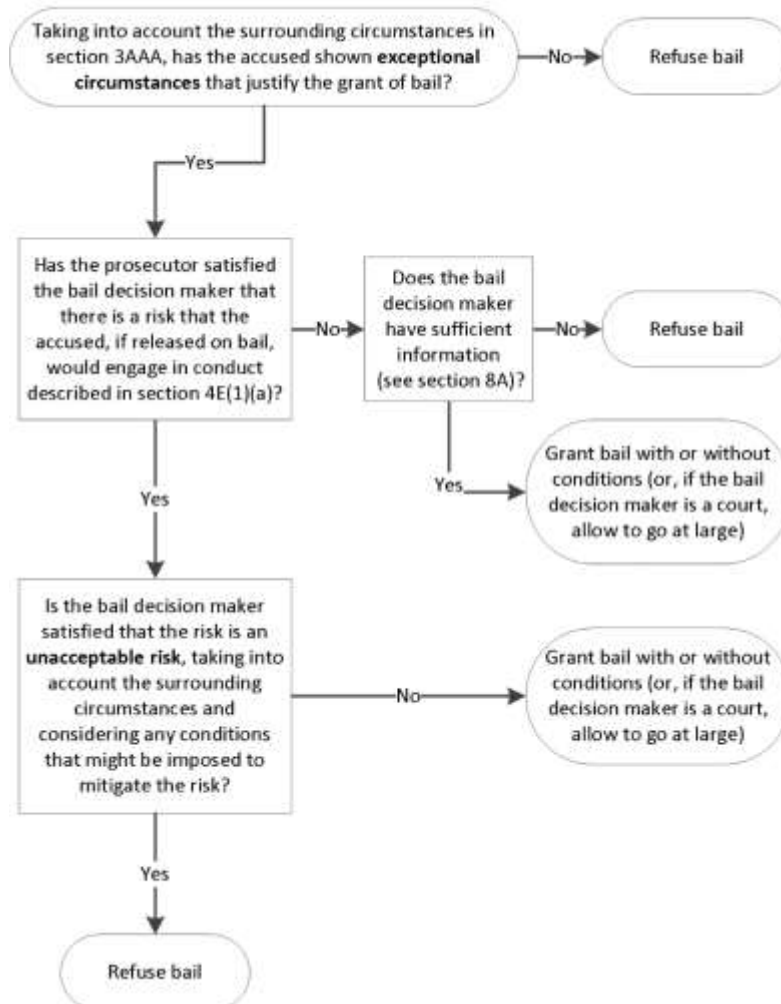
- (3) Flow Chart 2 shows the process for determining which tests are to be applied in deciding whether to grant bail to a person to whom neither subsection (2)(a) nor (b) applies.

Flow Chart 2 – Which tests apply generally?



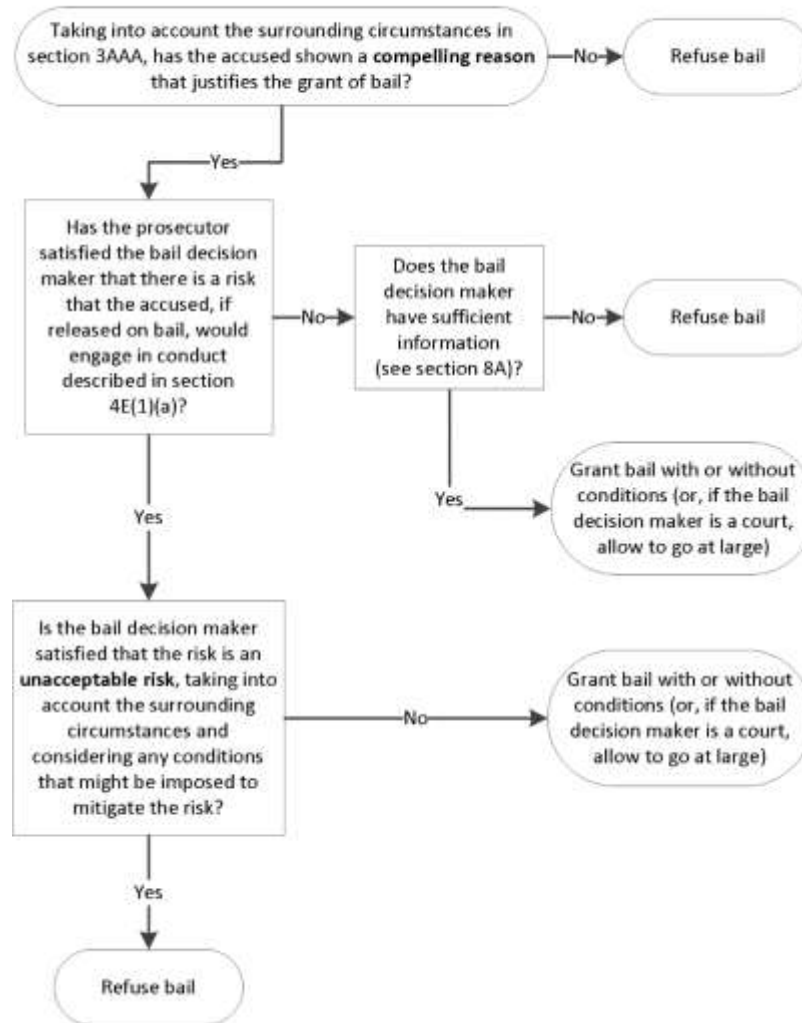
- (4) Flow Chart 3 shows the process for applying the step 1—exceptional circumstances test and then the step 2—unacceptable risk test.

Flow Chart 3 – Exceptional circumstances and unacceptable risk tests



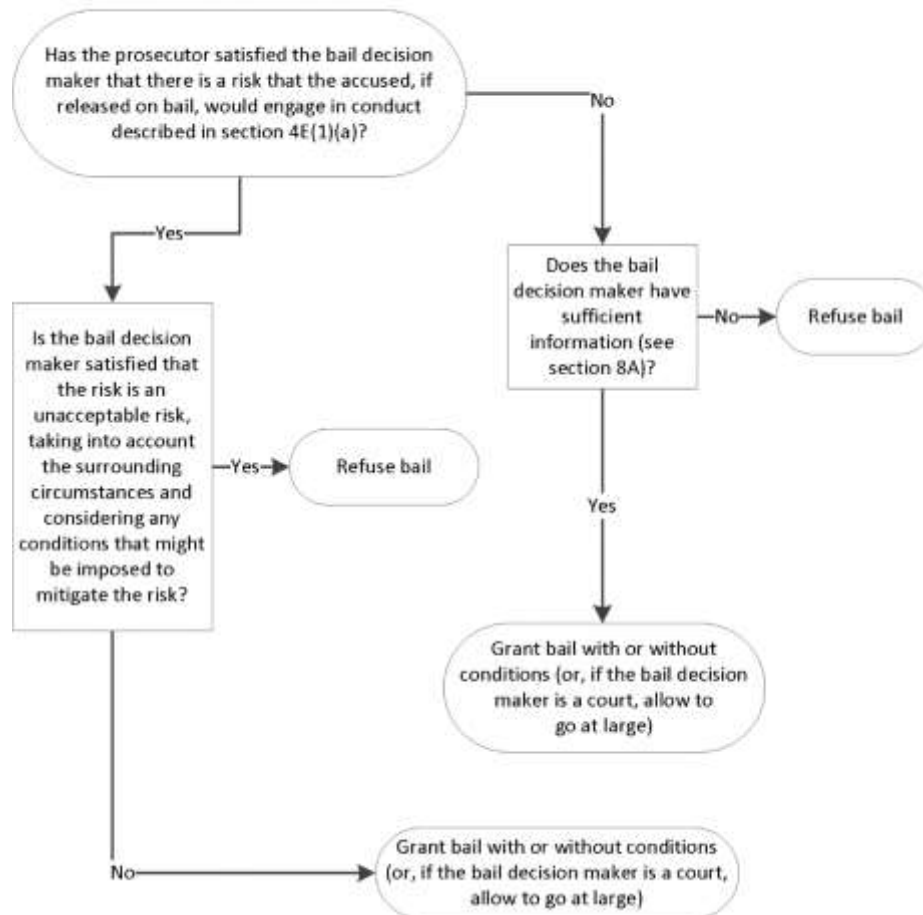
- (5) Flow Chart 4 shows the process for applying the step 1—show compelling reason test and then the step 2—unacceptable risk test.

Flow Chart 4 – Show compelling reason and unacceptable risk tests



(6) Flow Chart 5 shows the process for applying the unacceptable risk test alone.

Flow Chart 5 – Unacceptable risk test alone



Pt 2 (Heading)
inserted by
No. 70/2010
s. 6.
S. 4
substituted.¹

Part 2—Granting of bail and admission to bail

4 Entitlement to bail

A person accused of an offence, and being held in custody in relation to that offence, is entitled to be granted bail unless the bail decision maker is required to refuse bail by this Act.

S. 4AAA
inserted by
No. 28/2023
s. 9.

4AAA Offences in respect of which bail must not be refused

- (1) Despite anything to the contrary in any other provision of this Act, a bail decision maker who is deciding whether to grant bail to a person accused of an offence must not refuse bail if—
 - (a) the person is accused only of offences against the **Summary Offences Act 1966** that are not referred to in Schedule 3; and
 - (b) the person does not have a terrorism record; and
 - (c) if the bail decision maker is a court, no exception under subsection (2) applies.
- (2) An exception applies for the purposes of subsection (1)(c) if—
 - (a) the court has determined under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence; or
 - (b) the person was previously granted bail in respect of any of the offences of which the person is accused and that bail was subsequently revoked.

- (3) A reference in this Act to a bail decision maker considering, deciding or determining whether to grant bail (however described) includes a reference to a bail decision maker who is prohibited from refusing bail by subsection (1).

Example

Section 5AAAA(1) requires a bail decision maker considering the release on bail of an accused to make inquiries of the prosecutor as to whether certain instruments are in force against the accused. Under subsection (3), the bail decision maker must make these inquiries even if subsection (1) prohibits the bail decision maker from refusing bail.

- (4) Nothing in this section limits the power of a court to revoke bail.

4AA When 2 step tests apply

S. 4AA
inserted by
No. 32/2018
s. 84.

- (1) The step 1—exceptional circumstances test applies to a decision of whether to grant bail to a person accused of a Schedule 1 offence.
- (2) The step 1—exceptional circumstances test also applies to a decision of whether to grant bail to a person accused of a Schedule 2 offence if—
- (a) the person has a terrorism record; or
 - (b) the court considering whether to grant bail determines under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence; or
 - (c) the offence is alleged to have been committed—
 - (i) while the accused was on bail for any Schedule 1 offence or Schedule 2 offence; or
 - (ii) while the accused was subject to a summons to answer to a charge for any Schedule 1 offence or Schedule 2 offence; or

S. 4AA(2)
(c)(iiia)
inserted by
No. 28/2023
s. 25.

(iii) while the accused was at large awaiting trial for any Schedule 1 offence or Schedule 2 offence; or

(iiia) while the accused was on remand for a Schedule 1 offence or a Schedule 2 offence; or

S. 4AA(2)
(c)(iiib)
inserted by
No. 28/2023
s. 25.

(iiib) while the accused was at large awaiting sentence for a Schedule 1 offence or a Schedule 2 offence; or

Note

See subsection (5).

(iv) during the period of a community correction order made in respect of the accused for any Schedule 1 offence or Schedule 2 offence; or

(v) while the accused was otherwise serving a sentence for any Schedule 1 offence or Schedule 2 offence; or

Note to
s. 4AA(2)(c)(v)
inserted by
No. 28/2023
s. 26(1).

Note

See subsection (5).

(vi) while the accused was released under a parole order made in respect of any Schedule 1 offence or Schedule 2 offence; or

(d) the offence is an offence of conspiracy to commit, incitement to commit or attempting to commit an offence in a circumstance set out in paragraph (c).

- (3) The step 1—show compelling reason test applies to a decision of whether to grant bail to a person accused of a Schedule 2 offence if subsection (2) does not apply.
- (4) The step 1—show compelling reason test also applies to a decision of whether to grant bail to a person accused of an offence that is neither a Schedule 1 offence nor a Schedule 2 offence if—
 - (a) the person has a terrorism record; or
 - (b) the court considering whether to grant bail determines under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence.
- (5) For the purposes of subsection (2)(c)(iiib) and (v)—
 - (a) an accused who is released on an undertaking under section 72 of the **Sentencing Act 1991** following the court convicting the accused of an offence—
 - (i) is not at large awaiting sentence for that offence; and
 - (ii) is not serving a sentence for that offence; and
 - (b) an accused who is released on an undertaking under section 75 of the **Sentencing Act 1991** following the court being satisfied that the accused is guilty of an offence—
 - (i) is not at large awaiting sentence for that offence; and
 - (ii) is not serving a sentence for that offence.

S. 4AA(5)
inserted by
No. 28/2023
s. 26(2).

Note to s. 4AA
substituted by
No. 28/2023
s. 12.

S. 4A
(Heading)
amended by
No. 32/2018
s. 85(1).

S. 4A
inserted by
No. 3/2018
s. 7.

S. 4A(1)
substituted by
No. 32/2018
s. 85(2).

S. 4A(1A)
inserted by
No. 32/2018
s. 85(2).

Note

In circumstances where a step 1 test applies, section 4D provides that the unacceptable risk test will apply as a step 2 test. However, section 4D also provides that the unacceptable risk test applies even in circumstances where no step 1 test applies.

4A Step 1—exceptional circumstances test

- (1) This section applies if, under section 4AA(1) or (2), the step 1—exceptional circumstances test applies to a decision of whether to grant bail.
- (1A) The bail decision maker must refuse bail unless satisfied that exceptional circumstances exist that justify the grant of bail.
- (2) The accused bears the burden of satisfying the bail decision maker as to the existence of exceptional circumstances.
- (3) In considering whether exceptional circumstances exist, the bail decision maker must take into account the surrounding circumstances.

Note

The term *surrounding circumstances* is defined in section 3. Also the bail decision maker is required to take into account other matters if the accused is an Aboriginal person or a child. See sections 3A and 3B.

- (4) If the bail decision maker is satisfied that exceptional circumstances exist that justify the grant of bail, the bail decision maker must then move to step 2—unacceptable risk test.

	*	*	*	*	*	S. 4B inserted by No. 3/2018 s. 7, repealed by No. 32/2018 s. 86.
4C Step 1—show compelling reason test						S. 4C (Heading) amended by No. 32/2018 s. 87(1). S. 4C inserted by No. 3/2018 s. 7.
(1) This section applies if, under section 4AA(3) or (4), the step 1—show compelling reason test applies to a decision of whether to grant bail.						S. 4C(1) substituted by No. 32/2018 s. 87(2).
(1A) The bail decision maker must refuse bail unless satisfied that a compelling reason exists that justifies the grant of bail.						S. 4C(1A) inserted by No. 32/2018 s. 87(2).
(2) The accused bears the burden of satisfying the bail decision maker as to the existence of a compelling reason.						
(3) In considering whether a compelling reason exists, the bail decision maker must take into account the surrounding circumstances.						
Note						
The term <i>surrounding circumstances</i> is defined in section 3. Also the bail decision maker is required to take into account other matters if the accused is an Aboriginal person or a child. See sections 3A and 3B.						
(4) If the bail decision maker is satisfied that a compelling reason exists that justifies the grant of bail, the bail decision maker must then move to step 2—unacceptable risk test.						

S. 4D
(Heading)
amended by
No. 32/2018
s. 88(1).

4D When unacceptable risk test applies

A bail decision maker must apply the unacceptable risk test—

S. 4D
inserted by
No. 3/2018
s. 7,
amended by
No. 32/2018
s. 88(2),
substituted by
No. 28/2023
s. 13.

- (a) on section 4A(4) or 4C(4) requiring the bail decision maker to move to the step 2—unacceptable risk test; or
- (b) on a decision of whether to grant bail to which, under section 4AA, neither the step 1—exceptional circumstances test nor the step 1—show compelling reason test applies.

S. 4E
inserted by
No. 3/2018
s. 7.

4E All offences—unacceptable risk test

- (1) A bail decision maker must refuse bail for a person accused of any offence if the bail decision maker is satisfied that—

- (a) there is a risk that the accused would, if released on bail—

S. 4E(1)(a)(iaa)
inserted by
No. 32/2024
s. 903A(1).

- (iaa) commit a Schedule 1 offence or a Schedule 2 offence; or

S. 4E(1)(a)(i)
substituted by
No. 28/2023
s. 14(1),
amended by
No. 32/2024
s. 903A(2).

- (i) otherwise endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means; or

S. 4E(1)(a)(ii)
repealed by
No. 28/2023
s. 14(2).

* * * * *

- (iii) interfere with a witness or otherwise obstruct the course of justice in any matter; or

- (iv) fail to surrender into custody in accordance with the conditions of bail; and

- (b) the risk is an unacceptable risk.

Example

An unacceptable risk that the accused, if released on bail, would—

- (a) drive dangerously; or
- (b) commit a family violence offence; or
- (c) commit an aggravated burglary; or
- (d) commit an armed robbery; or
- (e) commit a carjacking; or
- (f) commit a home invasion.

Example to
s. 4E(1)
substituted by
No. 32/2024
s. 903D.

- (2) The prosecutor bears the burden of satisfying the bail decision maker—
 - (a) as to the existence of a risk of a kind mentioned in subsection (1)(a); and
 - (b) that the risk is an unacceptable risk.
- (3) In considering whether a risk mentioned in subsection (1)(a) is an unacceptable risk, the bail decision maker must—
 - (a) take into account the surrounding circumstances; and

Note

The term *surrounding circumstances* is defined in section 3. Also the bail decision maker is required to take into account other matters if the accused is an Aboriginal person or a child. See sections 3A and 3B.

- (b) consider whether there are any conditions of bail that may be imposed to mitigate the risk so that it is not an unacceptable risk.

5 Bail undertaking

S. 5
amended by
Nos 10087
s. 3(1)(Sch. 1
item 4),
16/1987
s. 12(Sch. 2
item 3(b))²,
23/1994
s. 118(Sch. 1
item 4.1(a)(b)),
97/2005
s. 182(Sch. 4
item 4),
68/2009
s. 97(Sch.
items 11.1,
11.3, 11.4),
13/2010
s. 51(Sch.
item 7),
substituted by
No. 70/2010
s. 8,
amended by
No. 44/2013
s. 4,
substituted by
No. 26/2017
s. 6.

S. 5(1)
amended by
No. 28/2023
s. 91(1).

S. 5(1A)
inserted by
No. 3/2018
s. 8(1),
amended by
No. 28/2023
s. 91(2).

(1) A grant of bail must require the accused to give an undertaking in writing to surrender into custody at the time and place of the hearing or trial specified in the undertaking and not to depart without leave of the court and, if leave is given, to return at the time specified by the court and again surrender into custody.

(1A) An accused who gives a bail undertaking is under a duty to attend court for the hearing or trial specified in the undertaking and surrender into custody on so attending.

(2) A grant of bail may be subject to—

- (a) conduct conditions; or
- (b) a condition that requires one or more bail guarantees or a deposit of money of a specified amount (whether or not the grant of bail is also subject to conduct conditions)—

but does not need to be subject to any of these conditions.

* * * * *

S. 5(2)
amended by
No. 3/2018
s. 8(2),
substituted by
No. 28/2023
s. 91(3).

S. 5(3)
repealed by
No. 28/2023
s. 43.

Notes

- 1 Sections 12 and 21 of the Charter of Human Rights and Responsibilities set out a right of freedom of movement and a right to liberty and security of the person.
- 2 Sections 23 and 25 of the Charter of Human Rights and Responsibilities set out the rights of children in the criminal process and the rights of an adult in criminal proceedings.
- 3 Section 7(2) of the Charter of Human Rights and Responsibilities sets out how a human right may be limited after taking into account all relevant factors, including any less restrictive means reasonably available to achieve the purpose that the limitation seeks to achieve.

5AAAA Family violence risks

- (1) A bail decision maker considering the release on bail of an accused must make inquiries of the prosecutor as to whether there is in force—
 - (a) a family violence intervention order made against the accused; or
 - (b) a family violence safety notice issued against the accused; or
 - (c) a recognised DVO made against the accused.

S. 5AAAA
inserted by
No. 3/2018
s. 9.

- (2) A bail decision maker considering the release on bail of an accused charged with a family violence offence must consider—
- (a) whether, if the accused were released on bail, there would be a risk that the accused would commit family violence; and
 - (b) whether that risk could be mitigated by—
 - (i) the imposition of a condition; or
 - (ii) the making of a family violence intervention order.

S. 5AAA
inserted by
No. 26/2017
s. 6.

5AAA Conduct conditions

- (1) A bail decision maker considering the release of an accused on bail must impose any condition that, in the opinion of the bail decision maker, will reduce the likelihood that the accused may—
- (aa) commit a Schedule 1 offence or a Schedule 2 offence; or
 - (a) otherwise endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means; or

S. 5AAA
(1)(aa)
inserted by
No. 32/2024
s. 903B(1).

S. 5AAA(1)(a)
substituted by
Nos 3/2018
s. 10, 28/2023
s. 15(1),
amended by
No. 32/2024
s. 903B(2).

S. 5AAA(1)(b)
substituted by
No. 3/2018
s. 10,
repealed by
No. 28/2023
s. 15(2).

* * * * *

S. 5AAA(1)(c)
substituted by
No. 3/2018
s. 10.

- (c) interfere with a witness or otherwise obstruct the course of justice in any matter; or

- (d) fail to surrender into custody in accordance with the bail undertaking.

S. 5AAA(1)(d)
substituted by
No. 3/2018
s. 10,
amended by
No. 28/2023
s. 92.

Example

A bail decision maker may impose a condition in order to reduce the likelihood that the accused may—

Example to
s. 5AAA(1)
substituted by
No. 32/2024
s. 903E.

- (a) drive dangerously; or
 - (b) commit a family violence offence; or
 - (c) commit an aggravated burglary; or
 - (d) commit an armed robbery; or
 - (e) commit a carjacking; or
 - (f) commit a home invasion.
- (2) If a bail decision maker imposes one or more conditions, each condition and the number of conditions—
- (a) must be no more onerous than is required to reduce the likelihood that the accused may do a thing mentioned in subsection (1)(a) to (d); and
 - (b) must be reasonable, having regard to the nature of the alleged offence and the circumstances of the accused; and
 - (c) subject to subsection (3), must be consistent with each condition of each family violence intervention order, family violence safety notice or recognised DVO to which the accused is subject.
- (3) A bail decision maker may impose a condition that is inconsistent with a condition of a family violence intervention order, family violence safety notice or recognised DVO if the bail decision maker is satisfied that the proposed

S. 5AAA(2)(c)
amended by
No. 26/2017
s. 16(3).

S. 5AAA(3)
amended by
No. 26/2017
s. 16(4).

condition will better protect the safety or welfare of—

- (a) an alleged victim of the offence with which the accused is charged; or
- (b) a protected person (within the meaning of the **Family Violence Protection Act 2008**).

**Note to
s. 5AAA(3)
substituted by
No. 26/2017
s. 16(5).**

Note

Sections 175AA, 175AB and 175AC of the **Family Violence Protection Act 2008** provide that if it is not possible to comply with both a bail condition and a family violence safety notice, a family violence intervention order or a recognised DVO, the safety notice, intervention order or recognised DVO prevails to the extent of the inconsistency.

- (4) Without limiting section 4(5) or 5(2), a bail decision maker may impose all or any of the following conditions about the conduct of an accused—
 - (a) reporting to a police station;
 - (b) residing at a particular address;
 - (c) subject to subsection (5), a curfew imposing times at which the accused must be at their place of residence;
 - (d) that the accused is not to contact specified persons or classes of person;

Example

Witnesses, alleged victims or co-accused.

- (e) surrender of the accused's passport;
 - (f) geographical exclusion zones, being places or areas the accused must not visit or may only visit at specified times;

Example

Not attending a gaming venue, a venue that sells alcohol or a point of international departure.

- (g) attendance and participation in a bail support service;

Note

If the accused is an Aboriginal person, see subsection (4A).

**Note to
s. 5AAA(4)(g)
inserted by
No. 28/2023
s. 34(1).**

- (h) that the accused not drive a motor vehicle or carry passengers when driving a motor vehicle;
- (i) that the accused not consume alcohol or use a drug of dependence within the meaning of the **Drugs, Poisons and Controlled Substances Act 1981** without lawful authorisation under that Act;
- (j) that the accused comply with any existing intervention orders;
- (k) any other condition that the bail decision maker considers appropriate to impose in relation to the conduct of the accused.

- (4A) If a bail decision maker is imposing a condition referred to in subsection (4)(g), and the accused is an Aboriginal person, the bail decision maker must take into account that it is important for the bail support services that Aboriginal people attend and participate in to be Aboriginal bail support services where that is appropriate, and where such services are available.

**S. 5AAA(4A)
inserted by
No. 28/2023
s. 34(2).**

Note

In making a determination under this Act in relation to an Aboriginal person, a bail decision maker must take into account the issues set out in section 3A(1).

- (5) If a bail decision maker imposes a curfew on an accused as a conduct condition, the period of curfew imposed must not exceed 12 hours within a 24-hour period.
- (6) A condition imposed by a bail decision maker continues to be binding on the accused until it is varied or revoked or the matter in relation to which it was imposed is finally determined by a court.

S. 5AAB
(Heading)
substituted by
No. 28/2023
s. 44(1).

5AAB Bail decision maker to have regard to means of accused or bail guarantor

S. 5AAB
inserted by
No. 26/2017
s. 6.

S. 5AAB(1)
amended by
No. 28/2023
s. 44(2).

- (1) If a bail decision maker is considering, in accordance with section 5(2)(b), imposing a condition that requires a deposit of money of a specified amount, the bail decision maker must have regard to the means of the accused in determining—
 - (a) whether to impose the condition; and
 - (b) the amount of money to be deposited.
- (2) If a bail decision maker is satisfied under subsection (1) that the accused does not have sufficient means to satisfy a condition requiring a deposit of money of a specified amount, the bail decision maker must consider whether any other condition would reduce the likelihood that the accused may do a thing mentioned in section 5AAA(1)(a) to (d).

- | | |
|--|---|
| (3) If a bail decision maker is considering imposing a condition that requires a bail guarantee, the bail decision maker must have regard to the means of a proposed bail guarantor in determining— | S. 5AAB(3) amended by No. 28/2023 s. 44(3)(a)(b). |
| (a) whether to impose the condition; and | |
| (b) the amount of the bail guarantee. | S. 5AAB(3)(b) amended by No. 28/2023 s. 44(3)(c). |
| | |
| (4) If a bail decision maker is satisfied under subsection (3) that the accused is unable to provide a bail guarantor with sufficient means, the bail decision maker must consider whether any other condition would reduce the likelihood that the accused may do a thing mentioned in section 5AAA(1)(a) to (d). | S. 5AAB(4) amended by No. 28/2023 s. 44(4). |

5AA Conditions of bail granted to a child in certain circumstances

S. 5AA inserted by No. 1/2016 s. 11.

- | | |
|--|---|
| (1) This section applies if an accused who is a child is granted bail by a bail justice, police officer, the sheriff or a person authorised under section 115(5) of the Fines Reform Act 2014 . | S. 5AA(1) amended by No. 26/2017 s. 15(2). |
| (2) The court, at the first hearing following the grant of bail at which the child is present, must ensure that the conditions of bail imposed by the bail justice, police officer, sheriff or person authorised under section 115(5) of the Fines Reform Act 2014 comply with the requirements of section 5AAA(2). | S. 5AA(2) amended by No. 26/2017 ss 14(3), 15(2). |
| (3) The court may make any variations to the conditions of bail that are necessary for the purposes of subsection (2). | |

5A Power to return accused to youth justice centre

S. 5A
(Heading)
amended by
Nos 48/2006
s. 42(Sch.
item 4.2),
68/2009
s. 97(Sch.
item 11.5).

S. 5A
inserted by
No. 21/2005
s. 60.

S. 5A(1)
amended by
Nos 68/2009
s. 97(Sch.
item 11.6),
43/2017
s. 38(1).

(1) Despite anything in this Act, if—

S. 5A(1)(a)
amended by
Nos 48/2006
s. 42(Sch.
item 4.3),
68/2009
s. 97(Sch.
item 11.6).

(a) the accused in a criminal proceeding in the Supreme Court or the County Court is a person undergoing a sentence of detention in a youth justice centre; and

(b) the Supreme Court or the County Court, as the case may be, adjourns the proceeding—

the Supreme Court or the County Court may, subject to subsection (3), instead of remanding the accused in custody—

S. 5A(1)(c)
amended by
Nos 68/2009
s. 97(Sch.
item 11.6),
28/2023
s. 110(2).

(c) direct that the accused be returned to the custody of the Secretary to the Department of Justice and Community Safety until the end of the sentence of detention or the resumption of the hearing, whichever is the sooner; and

- (d) either—
- (i) grant the accused bail on a condition that the accused is not to be admitted to bail until the end of the sentence of detention; or
 - (ii) refuse bail and direct that the accused be brought before the Supreme Court or the County Court, as the case may be, at a later date for it to consider the granting of bail.
- (2) In this section, *the end of the sentence of detention* means the time when the accused is released from custody, whether on parole or otherwise.
- (3) If the Secretary to the Department of Justice and Community Safety objects to the accused being returned to a youth justice centre under subsection (1), the Supreme Court or the County Court may only order that the accused is to be returned to a youth justice centre under that subsection if the Supreme Court or the County Court has considered—
- (a) the antecedents and behaviour of the accused; and
 - (b) the age and maturity of the accused; and
 - (c) any evidence of the behaviour of the accused in custody; and
 - (d) whether an application has been made to the Youth Parole Board regarding the custody of the accused; and

S. 5A(1)(d)(i) amended by Nos 68/2009 s. 97(Sch. item 11.6), 70/2010 s. 9, 28/2023 s. 112.

S. 5A(1)(d)(ii) amended by No. 68/2009 s. 97(Sch. item 11.6).

S. 5A(2) amended by No. 68/2009 s. 97(Sch. item 11.6).

S. 5A(3) inserted by No. 43/2017 s. 38(2), amended by Nos 3/2018 s. 28, 28/2023 s. 110(3).

(e) any other relevant factor.

Note to s. 5A
amended by
No. 68/2009
s. 97(Sch.
item 11.7).

Note

See also section 333 of the **Criminal Procedure Act 2009**.

S. 6
amended by
No. 68/2009
s. 97(Sch.
items 11.1,
11.8), repealed
by No. 3/2018
s. 23(3).

* * * * *

7 Opposing bail

S. 7(1)
amended by
Nos 26/2017
s. 14(4),
3/2018
s. 23(4),
28/2023
s. 72(1).

(1) Where the prosecutor intends to oppose the grant of bail to any person the prosecutor shall so state to the bail decision maker and the bail decision maker may, before or at any time during the course of the application for bail, make an order directing that the evidence taken, the information given, and the representations made and the reasons (if any) given or to be given by the bail decision maker shall not be published by any means—

S. 7(1)(a)
amended by
No. 68/2009
s. 97(Sch.
items 11.1,
11.9).

(a) if a committal proceeding is held—before the accused in respect of whom the application is made is discharged; or

S. 7(1)(b)
amended by
No. 68/2009
s. 97(Sch.
item 11.1).

(b) if the accused in respect of whom the application is made is tried or committed for trial—before the trial is ended.

S. 7(2)
amended by
Nos 9554
s. 2(2)(Sch. 2
item 18),
28/2023
s. 72(2).

(2) Any person who fails without lawful excuse, the proof of which lies upon the person, to comply with an order made under subsection (1) shall be guilty of an offence against this Act.

Penalty: 15 penalty units or imprisonment for three months.

8 Application for bail

(1) In any proceedings with respect to bail—

S. 8
amended by
No. 69/2009
s. 54(Sch. Pt 1
item 4) (ILA
s. 39B(1)).

(aa) the bail decision maker is not bound by the rules of evidence;

S. 8(1)(aa)
inserted by
No. 28/2023
s. 113(1).

(a) the bail decision maker may, subject to paragraph (b), make such inquiries on oath or by affirmation or otherwise of and concerning the accused as the bail decision maker considers desirable;

S. 8(1)(a)
amended by
Nos 26/2017
s. 14(5),
6/2018
s. 68(Sch. 2
item 13.1).

(b) the accused shall not be examined or cross-examined by the bail decision maker or any other person as to the offence with which the accused is charged and no inquiry shall be made of the accused as to that offence;

S. 8(1)(b)
amended by
Nos 68/2009
s. 97(Sch.
item 11.1),
26/2017
s. 14(5),
28/2023
s. 73(a).

(c) the prosecutor may, in addition to any other relevant evidence, submit evidence, whether by affidavit or otherwise—

S. 8(1)(c)
amended by
No. 3/2018
s. 23(4).

(i) to prove that the accused has previously been convicted of a criminal offence;

(ii) to prove that the accused has been charged with and is awaiting trial on another criminal offence;

(iia) to show that there is a risk that the accused may subject another person to family violence;

S. 8(1)(c)(iia)
inserted by
No. 26/2017
s. 7.

(iii) to prove that the accused has previously failed to surrender into custody in answer to bail; or

S. 8(1)(c)(iii)
amended by
No. 28/2023
s. 73(b).

- | | |
|--|--|
| | (iv) to show the circumstances of the alleged offence, particularly as they relate to the probability of conviction of the accused; |
| S. 8(1)(d)
amended by
Nos 35/1996
s. 453(Sch. 1
item 8.1),
26/2017
s. 14(5),
28/2023
s. 73(c). | (d) the bail decision maker may take into consideration any relevant matters agreed upon by the informant or prosecutor and the accused or the accused's legal practitioner; and |
| S. 8(1)(e)
amended by
No. 26/2017
s. 14(5)(6). | (e) the bail decision maker may receive and take into account any evidence which the bail decision maker considers credible or trustworthy in the circumstances. |
| S. 8(2)
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 4),
amended by
No. 28/2023
s. 113(2). | (2) Nothing in subsection (1)(aa) or (a) prevents the application of Part 3.10 of the Evidence Act 2008 . |
| S. 8(3)
inserted by
No. 3/2018
s. 11. | (3) A bail decision maker may adjourn the hearing of a proceeding with respect to bail for up to 4 hours if satisfied that the accused appears to be seriously affected by alcohol or another drug or a combination of drugs. |
| S. 8(4)
inserted by
No. 3/2018
s. 11. | (4) On adjourning a hearing under subsection (3), the bail decision maker may remand the accused in custody until the further hearing of the matter. |
| S. 8(5)
inserted by
No. 3/2018
s. 11. | (5) Subsection (6) applies if, on the first further hearing of a matter adjourned under subsection (3), the bail decision maker is satisfied that the accused still appears to be seriously affected by alcohol or another drug or a combination of drugs. |

- (6) The bail decision maker may adjourn the hearing of the matter for one further period of up to 4 hours and remand the accused in custody until the next hearing of the matter.

S. 8(6)
inserted by
No. 3/2018
s. 11.

8AA Court to make preliminary determination if terrorism risk alleged

S. 8AA
inserted by
No. 32/2018
s. 89.

- (1) This section applies if—
- (a) a court is considering whether to grant bail to a person who is accused of an offence (other than a person arrested on an enforcement warrant issued under the **Fines Reform Act 2014**); and
 - (b) the step 1—exceptional circumstances test does not apply to that decision by operation of section 4AA(2)(a), (c) or (d); and
 - (c) the prosecutor—
 - (i) states that the prosecutor has terrorism risk information in respect of the accused; and
 - (ii) alleges that this information shows that there is a risk that the accused will commit a terrorism or foreign incursion offence.

Notes

- 1 If a prosecutor makes such an allegation before a bail decision maker other than a court, that bail decision maker cannot grant bail. See sections 10(5AA) and 10A(5AA).
 - 2 See section 4AA(1) and (2) for when the step 1—exceptional circumstances test applies.
- (2) Before determining whether to grant bail, the court must determine whether there is a risk that the accused will commit a terrorism or foreign incursion offence.

Note

If the court determines that there is such a risk, a different step 1 test applies to the decision of whether to grant bail. See section 4AA(2)(b) and (4)(b).

- (3) For the purposes of subsection (2), but subject to subsection (4), the court must have regard to any terrorism risk information provided to the court.
- (4) The court must not have regard to terrorism risk information regarding the accused having, or having had, an association referred to in section 3AAA(1)(n)(i),(ii) or (iii) unless the court is satisfied that the accused knew—
 - (a) that the person or group had expressed support for—
 - (i) the doing of a terrorist act; or
 - (ii) a terrorist organisation; or
 - (iii) the provision of resources to a terrorist organisation; or
 - (b) that the person or group was directly or indirectly engaged in, preparing for, planning, assisting in or fostering the doing of a terrorist act; or
 - (c) that the group was a terrorist organisation.
- (5) Nothing in this section prevents the court from considering, under section 4E, whether there is an unacceptable risk an accused would, if released on bail, commit a terrorism or foreign incursion offence.

S. 8A
inserted by
No. 3/2018
s. 12.

8A Refusal of bail—any offence—insufficient information

A bail decision maker may refuse bail for a person accused of any offence if satisfied that it has not been practicable to obtain sufficient information for the purpose of deciding the matter

because of the shortness of the period since the commencement of the proceeding for the offence.

8B Refusal of bail—offence involving serious injury—uncertainty as to death or recovery

S. 8B
inserted by
No. 3/2018
s. 12.

- (1) This section applies in relation to an application for bail made by or on behalf of a person accused of an offence of causing injury to another person.
- (2) A bail decision maker may refuse bail if at the time of deciding the application it is uncertain whether the person injured will die or recover from the injury.

9 Bail guarantor

S. 9 (Heading)
inserted by
No. 28/2023
s. 45(1).

- (1) Every bail guarantor shall be a person who has attained the age of eighteen years who is not under any disability in law and is worth not less than the amount of the bail in real or personal property or both.
- (2) Where an accused is required to provide one or more bail guarantors regard may be had in considering the suitability of a proposed bail guarantor to the following in addition to any other relevant matters—
 - (a) the proposed bail guarantor's financial resources;
 - (b) the proposed bail guarantor's character and any previous convictions; and
 - (c) the proposed bail guarantor's proximity (whether in point of kinship place of residence or otherwise) to the accused.

S. 9(1)
amended by
Nos 9075
s. 5(2),
28/2023
s. 45(2).

S. 9(2)
amended by
Nos 68/2009
s. 97(Sch.
item 11.1),
28/2023
s. 45(3)(a)(b).

S. 9(2)(a)
amended by
No. 28/2023
s. 45(3)(c).

S. 9(2)(b)
amended by
No. 28/2023
s. 74(1)(a).

S. 9(2)(c)
amended by
No. 28/2023
s. 74(1)(b).

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No. 9008 of 1977
Part 2—Granting of bail and admission to bail

S. 9(2A)
inserted by
No. 70/2010
s. 10(1),
amended by
No. 28/2023
s. 45(4).

(2A) If an objection to a proposed bail guarantor is raised, the suitability of the proposed bail guarantor is to be determined by a magistrate or judge.

S. 9(3)
substituted by
No. 9158
s. 3(a),
amended by
Nos 68/2009
s. 97(Sch.
item 11.1),
26/2017
s. 14(7),
28/2023
s. 45(5)(a).

(3) Before admitting an accused to bail with one or more bail guarantors the bail decision maker or other person authorized by section 27 shall—

S. 9(3)(a)
amended by
No. 28/2023
s. 45(5)(b).

(a) be satisfied of the sufficiency of the means of each bail guarantor and for this purpose may require a proposed bail guarantor to—

(i) lodge in cash the amount of the bail; or

S. 9(3)(a)(ii)
amended by
Nos 51/1989
s. 142(e),
11/2001
s. 3(Sch.
item 5),
substituted by
No. 70/2010
s. 10(2).

(ii) lodge a document that is evidence of the ownership and the value of property or any other asset to the amount of the bail; and

Note

Examples of documents that may be required are a copy of a certificate of title for the property or a search of the title of the land, a current rate notice that includes a valuation of the property, an independent valuation of the property or a bank statement of a mortgage account in relation to the property.

S. 9(3)(b)
amended by
No. 84/1997
s. 5(1),
substituted by
No. 70/2010
s. 10(3),
amended by
No. 28/2023
ss 45(5)(c),
74(2).

(b) require each proposed bail guarantor to make an affidavit of justification for bail before the bail decision maker or other person authorized by section 27; and

(c) require each proposed bail guarantor to sign the bail undertaking.

S. 9(3)(c)
inserted by
No. 70/2010
s. 10(3),
amended by
No. 28/2023
ss 45(5)(c),
93(1).

(3A) For the purposes of this section—

S. 9(3A)
inserted by
No. 84/1997
s. 5(2),
amended by
No. 69/2009
s. 54(Sch. Pt 2
item 6),
substituted by
No. 70/2010
s. 10(4).

(a) a proposed bail guarantor may appear before a court within the meaning of section 3(1) of the **Evidence (Miscellaneous Provisions) Act 1958** by audio visual link or audio link in accordance with Part IIA of that Act; or

S. 9(3A)(a)
amended by
No. 28/2023
s. 45(6).

(b) a proposed bail guarantor may give information to any other bail decision maker or to a person authorised by section 27 by audio visual link or audio link within the meaning of section 42C of that Act.

S. 9(3A)(b)
amended by
Nos 26/2017
s. 14(8),
28/2023
s. 45(6).

(3B) If an audio visual link or an audio link is used as provided in subsection (3A)—

S. 9(3B)
inserted by
No. 84/1997
s. 5(2),
amended by
No. 68/2009
s. 97(Sch.
item 11.1),
substituted by
No. 70/2010
s. 10(4).

(a) the bail undertaking may be constituted by—

S. 9(3B)(a)
amended by
No. 28/2023
s. 93(2).

(i) the undertaking signed by the accused;
and

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S. 9(3B)(a)(ii)
amended by
Nos 11/2021
s. 25, 28/2023
s. 45(7)(a).

(ii) a copy of the undertaking signed by the accused which is transmitted to the bail guarantor by any means and signed by the bail guarantor (including by electronic signature); and

S. 9(3B)(a)(iii)
amended by
No. 26/2017
s. 14(9).

(iii) a copy of the document referred to in subparagraph (ii) which is transmitted back to the court or other person who is admitting the accused to bail;

(b) the affidavit of justification for bail may be constituted by—

S. 9(3B)(b)(i)
substituted by
No. 6/2018
s. 68(Sch. 2
item 13.2(a)),
amended by
No. 28/2023
s. 45(7)(b).

(i) the affidavit of the bail guarantor sworn or affirmed before an authorised affidavit taker within the meaning of the **Oaths and Affirmations Act 2018**; and

S. 9(3B)(b)(ii)
amended by
Nos 26/2017
s. 14(9),
6/2018
s. 68(Sch. 2
item 13.2(b)).

(ii) a copy of that sworn or affirmed affidavit which is transmitted to the court or other person who is admitting the accused to bail.

S. 9(3C)
inserted by
No. 70/2010
s. 10(4),
amended by
No. 26/2017
s. 14(9).

(3C) The court or other person may act on a copy of a document which is transmitted in accordance with subsection (3B).

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No. 9008 of 1977
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(3D) A bail guarantor who under subsection (3B)—

S. 9(3D)
inserted by
No. 70/2010
s. 10(4),
amended by
Nos 26/2017
s. 14(9),
6/2018
s. 68(Sch. 2
item 13.3),
28/2023
s. 45(8).

(a) signs a copy of a bail undertaking; or

S. 9(3D)(a)
amended by
No. 28/2023
s. 93(3).

(b) transmits a copy of a sworn or affirmed
affidavit of justification for bail—

S. 9(3D)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 13.3).

without delay must send the signed copy of the
undertaking or the original sworn or affirmed
affidavit (as the case may be) to the court or other
person who admitted the accused to bail.

* * * * *

S. 9(4)
repealed by
No. 6/2018
s. 68(Sch. 2
item 13.4).

(5) A court or other person—

S. 9(5)
amended by
No. 9158
s. 3(b)(i).

(a) before which or whom an affidavit of
justification is made may administer an oath
or affirmation to the deponent and shall ask
any questions which are required by any Act
or law to be asked in the circumstances or
which appear to the court or other person to
be necessary.

S. 9(5)(a)
amended by
Nos 9158
s. 3(b)(ii),
6/2018
s. 68(Sch. 2
item 13.5),
28/2023
s. 74(3).

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No. 9008 of 1977
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S. 9(5)(b)
amended by
No. 9158
s. 3(b)(iii),
repealed by
No. 6/2018
s. 68(Sch. 2
item 13.6).

* * * * *

S. 9(6)
amended by
Nos 68/2009
s. 97(Sch.
item 11.1),
6/2018
s. 68(Sch. 2
item 13.7),
28/2023
ss 45(9), 74(4).

- (6) Where it appears to a court that a bail guarantor has sworn or affirmed an affidavit of justification which the bail guarantor knew to be false in a material particular the court may declare the bail to be forfeited and issue its warrant for the apprehension of the accused.

S. 9(7)
inserted by
No. 9158
s. 3(c),
substituted by
No. 70/2010
s. 10(5),
amended by
No. 28/2023
s. 45(10).

- (7) If a bail guarantor has lodged a document that is evidence of ownership of property or any other asset under subsection (3), the bail guarantor may lodge in cash the amount of the bail and receive the document in return.

S. 9(7A)
inserted by
No. 70/2010
s. 10(5),
amended by
No. 28/2023
s. 45(10).

- (7A) If a bail guarantor lodges cash under subsection (7), the affidavit of justification of bail made by the bail guarantor must be endorsed to the effect that the type of security has been changed.

S. 9(8)
inserted by
No. 9158
s. 3(c),
amended by
No. 28/2023
s. 45(11).

- (8) Where a bail guarantor has pursuant to this section lodged in cash the amount of the bail the court or person with whom the cash is lodged shall issue a receipt for the money.

10 Power of police officer, sheriff or authorised person to grant or refuse bail

- (1) This section applies if a person is arrested and it is not practicable to bring the person before a court immediately after the person is taken into custody or, if questioning or investigation under section 464A(2) of the **Crimes Act 1958** has commenced, immediately on the expiration of the reasonable time referred to in section 464A(1) of that Act.

S. 10
amended by
Nos 51/1989
s. 142(f),
32/2006
s. 91(1)–(3),
37/2014
s. 10(Sch.
item 8.2),
47/2014 s. 250
(as amended
by No.
59/2017
s. 103), 1/2016
s. 12,
substituted by
No. 26/2017
s. 8.

- (2) A police officer of or above the rank of sergeant or for the time being in charge of a police station, the sheriff or a person authorised under section 115(5) of the **Fines Reform Act 2014** (as the case requires) must, without delay, consider whether to grant bail to the person in accordance with this Act.

S. 10(2)
amended by
No. 26/2017
s. 15(3).

- (3) If the person is a child, the bail decision maker must ensure that a parent or guardian of the child, or an independent person, is present during the proceeding in relation to bail.

Note

See also section 5AA (conditions of bail granted to a child in certain circumstances).

- (4) An independent person present in accordance with subsection (3) may take steps to facilitate the granting of bail, for example, by arranging accommodation.
- (5) The police officer, the sheriff or person authorised under section 115(5) of the **Fines Reform Act 2014**, in accordance with this Act, may grant or refuse bail.

S. 10(5)
amended by
No. 26/2017
s. 15(3).

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No. 9008 of 1977
Part 2—Granting of bail and admission to bail

Note to
s. 10(5)
substituted by
No. 26/2017
s. 14(10),
substituted as
Notes by
No. 3/2018
s. 23(6),
substituted as
Note by
No. 32/2018
s. 90(1),
amended by
No. 28/2023
s. 4.

Note

Sections 13, 13AA and 13A specify circumstances in which only a court may grant bail. These circumstances relate to—

- certain instances in which the step 1—exceptional circumstances test applies;
- certain terrorism or foreign incursion offences;
- accused persons who have a terrorism record;
- persons accused of Schedule 2 offences who are already on 2 or more undertakings of bail in relation to other indictable offences.

S. 10(5AA)
inserted by
No. 32/2018
s. 90(2).

- (5AA) The bail decision maker is prohibited from granting bail if the prosecutor—
- (a) states that the prosecutor has terrorism risk information in respect of the accused; and
 - (b) alleges that this information shows that there is a risk that the accused will commit a terrorism or foreign incursion offence.

S. 10(5A)
inserted by
No. 3/2018
s. 13(1),
amended by
Nos 3/2018
s. 23(5),
32/2018
s. 90(3).

- (5A) If the bail decision maker is prohibited by subsection (5AA) or section 13, 13AA or 13A from granting bail to the arrested person, the bail decision maker must—
- (a) refuse to consider whether to grant or refuse bail; and
 - (b) bring the person before a court as soon as practicable.

S. 10(5B)
inserted by
No. 3/2018
s. 13(1),
amended by
Nos 3/2018
s. 24(1),
28/2023 s. 94.

- (5B) Subsection (5C) applies if a bail decision maker who is the sheriff or a person authorised under section 115(5) of the **Fines Reform Act 2014** decides to grant bail but the person refuses to give a bail undertaking.

- | | |
|---|--|
| <p>(5C) Despite subsection (2), the bail decision maker may take and safely convey the person to a bail decision maker who is a police officer for their consideration.</p> | <p>S. 10(5C)
inserted by
No. 3/2018
s. 13(1).</p> |
| <p>(6) If bail is refused under subsection (5) and the arrested person is not a person to whom section 10AA applies, the bail decision maker must—</p> <ul style="list-style-type: none">(a) endorse on the warrant, file or other papers relating to the arrested person or in any register or record of persons in custody the reasons for refusing bail; and(b) if it is then within ordinary court sitting hours, cause the arrested person to be brought before a court as soon as practicable and advise the arrested person that they are entitled, should they so wish, to apply for bail when they appear before the court; and(c) if it is then outside ordinary court sitting hours, advise the arrested person that they are entitled, should they so wish, to apply to a bail justice for bail and—<ul style="list-style-type: none">(i) if the arrested person wishes to so apply for bail, cause the arrested person to be brought before a bail justice as soon as practicable; or(ii) if the arrested person does not wish to so apply for bail, cause the arrested person to be brought before a court as soon as practicable and advise the arrested person that they are entitled, should they so wish, to apply for bail when they appear before the court; and(d) cause to be produced before the court or bail justice a copy of the endorsement mentioned in paragraph (a); and | <p>S. 10(6)
substituted by
No. 3/2018
s. 13(2).</p> |

(e) give the person a written statement setting out the provisions of this subsection and of subsection (5).

S. 10(6A)
inserted by
No. 3/2018
s. 13(2).

(6A) If bail is granted but the arrested person objects to the amount fixed for bail or any condition of bail, the bail decision maker must—

(a) advise the arrested person that they are entitled, should they so wish, to apply to a court or, if it is then outside ordinary court sitting hours, to a bail justice for variation of the amount of bail or conditions of bail; and

(b) give the person a written statement setting out the provisions of this subsection and of subsections (5), (7) and (8).

S. 10(6B)
inserted by
No. 3/2018
s. 24(2).

(6B) Subsection (6A) does not apply to a person arrested on an enforcement warrant issued under the **Fines Reform Act 2014**.

S. 10(7)
substituted by
No. 3/2018
s. 13(3).

(7) Subsection (8) applies if the arrested person elects under subsection (6A) to apply for variation of the amount of bail or conditions of bail.

S. 10(8)
inserted by
No. 3/2018
s. 13(3).

(8) The bail decision maker must cause the arrested person to be brought before a court as soon as practicable or, if it is then outside ordinary court sitting hours, before a bail justice.

S. 10AA
inserted by
No. 3/2018
s. 14.

10AA Police remand

S. 10AA(1)
amended by
No. 3/2018
s. 23(7).

(1) Subject to subsection (2), this section applies to any arrested person mentioned in section 10(1) and for whom bail is refused under section 10(5) by a bail decision maker who is a police officer of or above the rank of sergeant or for the time being in charge of a police station.

- (2) This section does not apply to an arrested person who is—
- (a) a child; or
 - (b) a vulnerable adult; or
 - (c) an Aboriginal person; or
 - (d) a person arrested on an enforcement warrant issued under the **Fines Reform Act 2014**.
- (3) For the purposes of this section—
- (a) a person may be considered to be a vulnerable adult or an Aboriginal person if the police officer is of the opinion that the person is such a person; and
 - (b) a police officer, in considering whether an arrested person is an Aboriginal person, must have regard to any statement made by the arrested person (whether or not in response to a question asked by the police officer) as to whether they are an Aboriginal person.
- (4) If bail is refused under section 10(5) for a person to whom this section applies, the police officer must—
- (a) endorse on the warrant, file or other papers relating to the arrested person or in any register or record of persons in custody the reasons for refusing bail; and
 - (b) remand the person in custody to appear before a court as soon as practicable within the period of 48 hours after being so remanded; and
 - (c) cause to be produced before the court a copy of the endorsement mentioned in paragraph (a); and

S. 10AA(2)(d)
amended by
No. 3/2018
s. 24(3).

- (d) advise the arrested person that they are entitled, should they so wish, to apply for bail when they appear before the court; and
 - (e) give the person a written statement setting out the provisions of this section and of section 10(5).
- (5) The police officer must not remand the person in custody under subsection (4)(b) if the police officer considers that it is not practicable for the person to be brought before a court within the next 48 hours (including appearing before it by audio visual link).
- (6) In the circumstances mentioned in subsection (5) the person must be brought before a bail justice as soon as practicable.
- (7) If a person remanded in custody under subsection (4)(b) is not brought before a court within 48 hours after being so remanded, the person must be brought before a bail justice as soon as practicable after the expiry of that period of 48 hours.

S. 10A
inserted by
No. 26/2017
s. 8.

10A Power of bail justice to grant or refuse bail

S. 10A(1)
amended by
No. 3/2018
ss 15(1), 23(8).

- (1) This section applies if a person in custody is brought before a bail justice, whether as a result of being brought before the bail justice in accordance with section 10(6) or (8) or 10AA(6) or (7) of this Act or section 64(2)(a) or 78(2)(a) of the **Magistrates' Court Act 1989** or being otherwise before the bail justice.

S. 10A(2)
amended by
No. 3/2018
s. 23(9).

- (2) The bail justice must hear and determine any application made for bail or for variation of the amount of bail or conditions of bail, or for remand in custody, in respect of the person.

- (2A) If the person is brought before the bail justice because a police officer, on refusing bail for the person under section 10(5), was of the opinion that the person was an Aboriginal person or a vulnerable adult, the bail justice is not required to consider whether the person is such a person but may rely on the opinion of the police officer.
- (3) If the person is a child, the bail justice must ensure that a parent or guardian of the child, or an independent person, is present during the hearing of the application.

S. 10A(2A)
inserted by
No. 3/2018
s. 15(2).

Note

See also section 5AA (conditions of bail granted to a child in certain circumstances).

- (4) An independent person present in accordance with subsection (3) may take steps to facilitate the granting of bail, for example, by arranging accommodation.
- (5) The bail justice, in accordance with this Act, may grant or refuse bail.

Note

Sections 13, 13AA and 13A specify circumstances in which only a court may grant bail. These circumstances relate to—

- certain instances in which the step 1—exceptional circumstances test applies;
- certain terrorism or foreign incursion offences;
- accused persons who have a terrorism record;
- persons accused of Schedule 2 offences who are already on 2 or more undertakings of bail in relation to other indictable offences.

Note to
s. 10A(5)
substituted by
No. 26/2017
s. 14(10),
substituted as
Notes by
No. 3/2018
s. 23(6),
substituted as
Note by
No. 32/2018
s. 91(1),
amended by
No. 28/2023
s. 5.

- (5AA) The bail justice is prohibited from granting bail if the prosecutor—
- (a) states that the prosecutor has terrorism risk information in respect of the accused; and

S. 10A(5AA)
inserted by
No. 32/2018
s. 91(2).

- (b) alleges that this information shows that there is a risk that the accused will commit a terrorism or foreign incursion offence.

S. 10A(5AAB)
inserted by
No. 32/2018
s. 15(2).

- (5AAB) If the bail justice is prohibited by subsection (5AA) or section 13, 13AA or 13A from granting bail to the person, the bail justice must refuse to consider whether to grant or refuse bail.

Note

Section 10B requires that the informant must bring the person before a court as soon as practicable.

S. 10A(5A)
inserted by
No. 3/2018
s. 15(3).

- (5A) A bail justice who grants bail must certify on the remand warrant—

- (a) consent to the person being bailed; and
- (b) the amount specified in any bail guarantee; and

S. 10A(5A)(b)
amended by
No. 28/2023
s. 46.

- (c) any conditions of bail.

- (6) A bail justice who refuses bail must remand the person in custody to appear before a court—

- (a) on the next working day; or
- (b) within 2 working days if—
 - (i) the next working day is not practicable; or
 - (ii) the person is a child and the proper venue of the Children's Court is in a region of the State prescribed under the **Children, Youth and Families Act 2005**.

S. 10A(7)
inserted by
No. 3/2018
s. 15(4).

- (7) On remanding the person in custody under subsection (6), the bail justice must certify on the remand warrant a statement of the refusal of bail and of the grounds for it.

10B Informant must bring person to court if bail justice prohibited from granting bail

S. 10B
inserted by
No. 32/2018
s. 92.

- (1) This section applies if a bail justice is prohibited by section 10A(5AA), 13, 13AA or 13A from granting bail to a person.

Note

Section 10A(5AAB) requires that the bail justice must refuse to consider whether to grant or refuse bail in these circumstances.

- (2) The informant must cause the person to be brought before a court as soon as practicable.

11 Cash deposit as security for penalty

No. 7405 s. 19.

- (1) Where a person is apprehended for an offence against section 17 of the **Summary Offences Act 1966** a police officer of or above the rank of sergeant or for the time being in charge of a police station shall in addition to any power the police officer may have to release such person on bail have power to release the person on the person's making a deposit of such amount not exceeding \$50 as the police officer thinks reasonable as security for the payment of any penalty that may be imposed as punishment for the person's offence.

S. 11(1)
amended by
Nos 37/2014
s. 10(Sch.
item 8.3),
6/2021 s. 12,
28/2023
s. 75(1).

- (2) Upon releasing a person under this section the police officer shall notify the person that the person is required to appear before a court at a certain time and place and that if the person fails to appear accordingly the charge may be heard in the person's absence and that the deposit will be appropriated to the payment or part payment of any fine that may be imposed by the court and that any surplus thereof will be paid into the Consolidated Fund but that if the person appears to answer to the charge any surplus will be refunded to the person.

S. 11(2)
amended by
Nos 37/2014
s. 10(Sch.
item 8.3),
28/2023
s. 75(2).

Bail Act 1977
No. 9008 of 1977
Part 2—Granting of bail and admission to bail

S. 11(3)
amended by
No. 28/2023
s. 75(3).

- (3) Notwithstanding anything to the contrary in any Act or law, where any person who is released in accordance with the provisions of this section fails to appear at the time and place notified to the person the charge may be heard and determined in the person's absence and the deposit lodged by the person shall be appropriated to the payment or part payment of any fine that may be imposed by the court and any surplus thereof shall be paid into the Consolidated Fund.

S. 11(4)
amended by
No. 28/2023
s. 75(4).

- (4) Where a person who is released in accordance with the provisions of this section appears to answer to the charge any surplus shall be refunded to the person.

S. 11(5)
amended by
Nos 68/2009
s. 97(Sch.
item 11.10),
37/2014
s. 10(Sch.
item 8.3).

- (5) A statement in the prescribed form purporting to be signed by the police officer who released a person under this section shall be prima facie evidence that the accused was released and notified in accordance with the provisions of subsections (1) and (2).

S. 12
amended by
Nos 9427
s. 6(1)(Sch. 5
item 7),
51/1989
s. 142(g),
84/1997 s. 6,
68/2009
s. 97(Sch.
items 11.11,
11.12),
70/2010 s. 11,
1/2016 s. 13,
substituted by
No. 26/2017
s. 9.

12 Power of court to grant or refuse bail

S. 12(1)
amended by
Nos 3/2018
ss 16(1),
23(10),
32/2018
s. 93(1).

- (1) This section applies if a person in custody is before a court, whether as a result of being brought before it in accordance with section 10(6) or (8), 10AA(4) or 10A(5AAB) or (6) of this Act

or section 64(2)(a) of the **Magistrates' Court Act 1989** or being otherwise before it.

- (2) The court must hear and determine any application made for bail or for variation of the amount of bail or conditions of bail, or for remand in custody, in respect of the person.
- (3) The court, in accordance with this Act, may grant or refuse bail.

S. 12(2)
amended by
No. 3/2018
s. 23(9).

Note

Section 13(1) and (2) set out circumstances in which only the Supreme Court, or a court on committing a person to trial for murder, may grant bail.

Note to
s. 12(3)
substituted by
Nos 26/2017
s. 14(10),
32/2018
s. 93(2).

- (3AA) Additionally, the court may allow the person to go at large if—

S. 12(3AA)
inserted by
No. 28/2023
s. 114.

(a) the court considers it appropriate to do so;
and

(b) the court is not required to refuse bail.

- (3A) A court that grants bail for a person accused of an offence must record on the remand warrant, file or other papers—

S. 12(3A)
inserted by
No. 3/2018
s. 16(2),
substituted by
No. 32/2018
s. 93(3).

(a) consent to the person being bailed; and

(b) the amount specified in any bail guarantee;
and

S. 12(3A)(b)
amended by
No. 28/2023
s. 47.

(c) any conditions of bail.

- (4) If the court refuses bail, it must—

(a) remand the person in custody to appear before a court at a later date, which must not be for a period longer than 21 clear days in the case of a child; and

- (b) certify on the remand warrant a statement of the refusal and of the grounds for it.
- (5) If a child is brought before a court on the expiry of a period of remand in custody, the court must not remand the child in custody for a further period longer than 21 clear days.

S. 12A
inserted by
No. 3/2018
s. 17,
substituted by
No. 32/2018
s. 94.

12A When bail decision maker must state reasons for granting bail

- (1) This section applies if a bail decision maker grants bail in circumstances where, under section 4AA—
 - (a) the step 1—exceptional circumstances test applies; or
 - (b) the step 1—show compelling reason test applies.
- (2) If the bail decision maker is a court, the court must include in the order granting bail a statement of reasons for granting bail.
- (3) Otherwise, the bail decision maker must record and transmit a statement of reasons as required by the regulations.

S. 12B
inserted by
No. 3/2018
s. 18.

12B Persons subject to a summons to answer to a charge

- (1) This section applies if—
 - (a) a person subject to a summons to answer to a charge for an offence is before a court (other than the Children's Court) on a hearing in the criminal proceeding relating to the charge; and
 - (b) the hearing of the criminal proceeding is to be adjourned.

- | | |
|--|--|
| <p>(2) Subject to subsection (2A), the court may, on an application made by the prosecutor or on its own initiative—</p> <p style="margin-left: 40px;">(a) remand the person in custody to appear before the court on the resumption of the hearing; or</p> <p style="margin-left: 40px;">(b) in accordance with this Act, grant the person bail.</p> | <p>S. 12B(2) amended by No. 28/2023 s. 10(1)(a).</p> <p>S. 12B(2)(a) amended by No. 28/2023 s. 10(1)(b).</p> <p>S. 12B(2)(b) amended by No. 28/2023 s. 10(1)(b).</p> |
| <p>(2A) The court must not refuse bail if—</p> <p style="margin-left: 40px;">(a) the person is accused only of offences against the Summary Offences Act 1966 that are not referred to in Schedule 3; and</p> <p style="margin-left: 40px;">(b) the person does not have a terrorism record; and</p> <p style="margin-left: 40px;">(c) no exception under subsection (2B) applies.</p> | <p>S. 12B(2A) inserted by No. 28/2023 s. 10(2).</p> |
| <p>(2B) An exception applies for the purposes of subsection (2A)(c) if—</p> <p style="margin-left: 40px;">(a) the court has determined under section 8AA that there is a risk that the person will commit a terrorism or foreign incursion offence; or</p> <p style="margin-left: 40px;">(b) the person was previously granted bail in respect of any of the offences of which the person is accused and that bail was subsequently revoked.</p> | <p>S. 12B(2B) inserted by No. 28/2023 s. 10(2).</p> |
| <p>(2C) If, under subsection (2A), the court must not remand the person, the court must instead either—</p> <p style="margin-left: 40px;">(a) grant the person bail; or</p> <p style="margin-left: 40px;">(b) allow the person to go at large.</p> | <p>S. 12B(2C) inserted by No. 28/2023 s. 10(2).</p> |

(3) Nothing in this section—

(a) affects the operation of section 331 of the
Criminal Procedure Act 2009; or

(b) prevents the court allowing the person to go
at large, including on refusing an application
made by the prosecutor under subsection (2).

S. 12B(3)(b)
amended by
No. 28/2023
s. 10(3).

S. 13
(Heading)
substituted by
Nos 26/2017
s. 11(1),
32/2018
s. 95(1).

S. 13
amended by
No. 9690 s. 3,
substituted by
No. 10084
s. 18(1)(b),
amended by
Nos 10257
s. 77, 68/2009
s. 97(Sch.
item 11.1),
substituted by
No. 26/2017
s. 10.

S. 13(2)
amended by
No. 3/2018
s. 23(11).

S. 13(3)
inserted by
No. 26/2017
s. 11(2),
amended by
No. 3/2018
s. 19(1),
substituted by
Nos 32/2018
s. 95(2),
28/2023
s. 6(1).

13 Treason, murder, certain other offences

(1) Only the Supreme Court may grant bail to a
person accused of treason.

(2) Only the Supreme Court, or a court on committing
the person for trial, may grant bail to a person
accused of murder.

(3) Only a court may grant bail—

(a) to a person accused of a Schedule 1 offence;
or

(b) subject to subsection (4), on any other
decision to which, under section 4AA, the
step 1—exceptional circumstances test
applies.

(4) Subsection (3) does not apply if the step 1—
exceptional circumstances test applies only
because of section 4AA(2)(c) or (d) and—

S. 13(4)
inserted by
No. 3/2018
s. 19(2),
substituted by
No. 32/2018
s. 95(2).

(a) the accused person is a child, a vulnerable
adult or an Aboriginal person.

S. 13(4)(a)
amended by
No. 28/2023
s. 6(2)(a).

* * * *

S. 13(4)(b)
repealed by
No. 28/2023
s. 6(2)(b).

(5) Only a court may grant bail to a person accused of
an offence against—

(a) a provision of Subdivision A of Division 72
of Chapter 4 of the Criminal Code of the
Commonwealth; or

(b) a provision of Part 5.3 or 5.5 of the Criminal
Code of the Commonwealth.

S. 13(5)
inserted by
No. 3/2018
s. 19(2),
substituted by
No. 32/2018
s. 95(2).

Note

Section 15AA of the Crimes Act 1914 of the
Commonwealth contains restrictions on the granting of bail
for certain Commonwealth offences.

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S. 13(6)
inserted by
No. 3/2018
s. 19(2),
repealed by
No. 32/2018
s. 95(3).

13AA Accused with terrorism record

Only a court may grant bail to a person who has a
terrorism record, irrespective of the offence of
which the person is accused.

S. 13AA
inserted by
No. 32/2018
s. 96.

S. 13A
inserted by
No. 3/2018
s. 20.

13A Accused on 2 or more undertakings of bail

S. 13A(1)
amended by
No. 28/2023
s. 7(1).

- (1) This section applies to a person (other than a child, a vulnerable adult or an Aboriginal person) who is accused of a Schedule 2 offence and who is already on 2 or more undertakings of bail in relation to other indictable offences.

- (2) Only a court may grant bail to the person.

S. 13A(3)
repealed by
No. 28/2023
s. 7(2).

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S. 14
amended by
No. 68/2009
s. 97(Sch.
item 11.1),
repealed by
No. 26/2017
s. 14(11).

* * * * *

S. 15
amended by
Nos 51/1989
s. 142(h)(i),
68/2009
s. 97(Sch.
items 11.1,
11.13),
repealed by
No. 70/2010
s. 12.

* * * * *

No. 8731
ss 26, 27.

16 Extension of bail

S. 16(1)
amended by
Nos 26/2017
s. 14(12),
28/2023
ss 48(1), 76(1),
95(1).

- (1) Every bail undertaking may with the consent of each person offering themselves as a bail guarantor contain a provision for its extension without any further consent of all the bail guarantors upon such postponements or adjournments of the hearing as are from time to time directed, but nothing in this subsection shall prejudice in any way the right of each person

offering themselves as a bail guarantor to elect to be bound with respect to a bail undertaking which may be extended only with that person's consent given at the time of the extension and no bail decision maker shall refuse to admit a person to bail on the ground only that a person offering themselves as a bail guarantor has so elected.

- (2) Where a hearing is adjourned or postponed the time and place for the commencement of the sitting to which the hearing is adjourned or postponed shall be stated openly by the court, and the court—

S. 16(2)
amended by
Nos 70/2010
s. 13, 28/2023
ss 48(2),
95(2)(b).

(a) with the consent of the bail guarantors; or

S. 16(2)(a)
amended by
No. 28/2023
s. 48(2).

(b) where the bail undertaking so provides—
without the consent of the bail guarantors—

S. 16(2)(b)
amended by
No. 28/2023
ss 48(2),
95(2)(a).

may extend the bail of the person charged, and thereupon the person charged shall be bound to attend at that time and place without giving a fresh bail undertaking and the bail guarantors shall be bound accordingly, or the court may make such order as to bail and as to the remand of the person charged in custody until bail is forthcoming as the court thinks fit.

- (3) Where a person charged with an offence or apprehended under a warrant is remanded in custody or committed to safe custody during an adjournment or released on bail and a court is satisfied—

S. 16(3)
amended by
Nos 20/2004
s. 11, 68/2009
s. 97(Sch.
items 11.1,
11.14),
28/2023
ss 76(2), 95(3).

Bail Act 1977
No. 9008 of 1977
Part 2—Granting of bail and admission to bail

S. 16(3)(a)
inserted by
No. 20/2004
s. 11,
amended by
No. 68/2009
s. 97(Sch.
items 11.1,
11.14(a)).

(a) if the accused is remanded in custody or committed to safe custody, the accused is by reason of illness, accident or other sufficient cause unable to attend personally; or

S. 16(3)(b)
inserted by
No. 20/2004
s. 11,
amended by
No. 68/2009
s. 97(Sch.
item 11.1).

(b) if the accused is released on bail, the accused is not present for sufficient cause—

on the day on which the accused is required to attend the court may, in the absence of the accused, order the accused to be further remanded for such time or committed to safe custody for such time as the court thinks fit and may order any bail undertaking to be extended so as to require the attendance of the accused at every time and place to which the accused is remanded or the hearing is adjourned.

S. 16(4)
amended by
Nos 51/1989
s. 142(j),
28/2023
s. 95(4).

(4) An endorsement on a bail undertaking to the effect that it has been extended by a court pursuant to the provisions of this section and stating the time and place at which the person charged is bound to attend and purporting to be signed by the person constituting the court shall be proof until the contrary is shown that the bail was so extended.

16A Written notice of extension of bail

A court extending bail must cause to be given to the accused and each bail guarantor, if any, for the attendance of the accused notice in writing stating that—

S. 16A
inserted by
No. 20/2004
s. 12,
amended by
Nos 68/2009
s. 97(Sch.
items 11.1,
11.15),
28/2023
s. 49(a).

- (a) bail has been extended by the court in the absence of the accused and the bail guarantor; and
- (b) the date, time and place at which the accused is bound to attend; and
- (c) the consequences of failure to attend at that time and place.

S. 16A(a)
amended by
No. 28/2023
s. 49(b).

S. 16A(b)
amended by
No. 68/2009
s. 97(Sch.
item 11.1).

16B Capacity of child to give bail undertaking

If, in the opinion of a bail decision maker granting bail to a child, the child does not have the capacity or understanding to give a bail undertaking, the child may be released on bail if the child's parent or some other person gives an undertaking, in any amount which the bail decision maker thinks fit, to produce the child at the venue of the court to which the hearing of the charge is adjourned or the court to which the child is committed for trial.

S. 16B
(Heading)
amended by
No. 28/2023
s. 96(1).

S. 16B
inserted by
No. 1/2016
s. 14,
amended by
Nos 26/2017
s. 14(13),
28/2023
s. 96(2).

17 Written notice of conditions of bail

- (1) A bail decision maker admitting an accused to bail shall cause to be given to the accused a notice in writing setting forth the obligations of the accused concerning the conditions of bail and the consequences of failure to comply with those conditions and shall be satisfied before releasing the accused that the accused understands

S. 17(1)
amended by
Nos 68/2009
s. 97(Sch.
item 11.1),
26/2017
s. 14(14),
28/2023
s. 77(1).

the nature and extent of the conditions of bail and the consequences of failure to comply with them.

S. 17(2)
amended by
Nos 68/2009
s. 97(Sch.
items 11.1,
11.16),
26/2017
s. 14(14),
28/2023 ss 50,
77(2).

- (2) A bail decision maker admitting an accused to bail with one or more bail guarantees shall cause to be given to each bail guarantor notice in writing of the obligations of the accused concerning the conditions of bail and the consequences of failure to comply with those conditions and shall be satisfied before releasing the accused that each bail guarantor understands the nature and extent of the obligations of the accused under the conditions of bail and the consequences of failure to comply with them.

S. 17A
(Heading)
amended by
No. 28/2023
s. 97(1).

17A Electronic signature of bail undertaking by accused

S. 17A
inserted by
No. 11/2021
s. 26.

S. 17A(1)
amended by
No. 28/2023
s. 97(2)(a)(b).

- (1) Without limiting how an accused may give a bail undertaking, the requirements for an accused to give a bail undertaking are satisfied if—
- (a) the bail decision maker, or another authorised person, sends a copy of the undertaking and a copy of the section 17 notice to the accused by electronic communication; and
 - (b) the accused, by return electronic communication to, or audio visual link with, the bail decision maker or authorised person confirms that the accused—
 - (i) has received a copy of the section 17 notice; and
 - (ii) understands the nature and extent of the conditions of the accused's bail; and

- (iii) understands the consequences of the failure to comply with the conditions of bail; and
 - (c) the accused, by return electronic communication to the bail decision maker or authorised person signs the undertaking by electronic signature; and
 - (d) on receipt of the electronic communication referred to in paragraph (c) from the accused, the bail decision maker or authorised person—
 - (i) makes a note on the undertaking that the undertaking has been given by the accused by electronic signature; and S. 17A(1)(d)(i) amended by No. 28/2023 s. 97(2)(c).
 - (ii) makes a note on the undertaking stating the bail decision maker's or authorised person's name and position; and
 - (iii) attaches a copy of the electronic communication from the accused to the annotated undertaking.
- (2) Subject to subsection (3), if a bail undertaking is given in accordance with subsection (1), the annotated undertaking with the attached electronic communication from the accused constitutes the bail undertaking. S. 17A(2) amended by No. 28/2023 s. 97(3).
- (3) If a bail undertaking given in accordance with subsection (1) is in respect of a grant of bail that is subject to a condition that requires one or more bail guarantees and each bail guarantor signs the annotated undertaking, the bail undertaking is constituted by the annotated undertaking with attached electronic communication from the accused. S. 17A(3) amended by No. 28/2023 ss 51, 97(4).

S. 17A(4)
amended by
No. 28/2023
s. 97(5).

- (4) If a bail undertaking is given in accordance with this section, the bail decision maker or authorised person, without delay, must cause a copy of the undertaking and the section 17 notice to be sent to the accused by electronic communication or post.

- (5) In this section—

authorised person means a person authorised by section 27 to admit an accused person to bail.

S. 17B
inserted by
No. 11/2021
s. 26.

17B Electronic signature of undertaking by child accused's parent or some other person

S. 17B(1)
amended by
No. 28/2023
s. 98(1)(a).

- (1) Without limiting how a parent of a child or some other person (the ***undertaking person***) may give an undertaking under section 16B, the requirements for an undertaking person to give an undertaking are satisfied if—

- (a) the bail decision maker, or another authorised person, sends a copy of the undertaking and a copy of the section 17 notice to the undertaking person by electronic communication; and
- (b) the undertaking person, by return electronic communication to the bail decision maker or authorised person, signs the undertaking by electronic signature; and
- (c) on receipt of the electronic communication from the undertaking person, the bail decision maker or authorised person—

S. 17B(1)(c)(i)
amended by
No. 28/2023
s. 98(1)(b).

- (i) makes a note on the undertaking that the undertaking has been given by the undertaking person by electronic signature; and
 - (ii) makes a note on the undertaking stating the bail decision maker's or authorised person's name and position; and

- (iii) attaches a copy of the electronic communication from the undertaking person to the annotated undertaking.
- (2) Subject to subsection (3), if an undertaking is given in accordance with subsection (1), the annotated undertaking with the attached electronic communication from the undertaking person constitutes the undertaking. S. 17B(2)
amended by
No. 28/2023
s. 98(2).
- (3) If an undertaking given in accordance with subsection (1) is in respect of a grant of bail that is subject to a condition that requires one or more bail guarantees and each bail guarantor signs the annotated undertaking, the undertaking is constituted by the annotated undertaking with the attached electronic communication from the undertaking person. S. 17B(3)
amended by
No. 28/2023
ss 52, 98(2).
- (4) If an undertaking is given in accordance with this section, the bail decision maker or authorised person, without delay, must cause a copy of the undertaking and the section 17 notice to be sent to the undertaking person by electronic communication or post. S. 17B(4)
amended by
No. 28/2023
s. 98(2).
- (5) In this section—
authorised person has the same meaning as in section 17A(5).

Part 3—Further application for bail, variation of bail conditions, revocation of bail

Pt 3 (Heading)
inserted by
No. 70/2010
s. 14.

S. 18
amended by
Nos 9158 s. 4,
16/1986
s. 30, 51/1989,
s. 142(k)–(o),
57/1989
s. 4(1)(c),
35/1996
s. 453(Sch. 1
item 8.2),
84/1997
s. 7, 68/2009
s. 97(Sch.
items 11.1,
11.17),
substituted by
No. 70/2010
s. 15.

18 Further application for bail where bail refused or revoked

- (1) An accused who has been refused bail and is in custody pending the hearing or trial of a charge may make a further application for bail.
- (2) A person whose bail has been revoked under section 18AE or 24(3) may make a further application for bail.
- (3) Subject to section 144(2)(c) of the **Criminal Procedure Act 2009**, an application under subsection (1) or (2) is to be made—

S. 18(3)(a)
amended by
No. 26/2017
s. 14(15).

- (a) in the case of a person charged with treason or murder, to the Supreme Court;

- (b) in any other case, to the court to which the person is remanded to appear.

S. 18(4)
inserted by
No. 44/2013
s. 5.

- (4) Without limiting subsection (3), if it is reasonably practicable to do so, an application under this section is to be heard by a court constituted by the same judge or magistrate who heard the previous application for bail.

S. 18AA
inserted by
No. 70/2010
s. 15.

18AA Certain circumstances required before application may be heard

- (1) A court must not hear an application under section 18 unless—
 - (aa) the application is the first or second instance of the applicant applying to a court for bail (whether under section 18 or otherwise) since being taken into custody; or

S. 18AA(1)(aa)
inserted by
No. 28/2023
s. 115.

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No. 9008 of 1977

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- (a) the applicant satisfies the court that new facts or circumstances have arisen since the refusal or revocation of bail; or
 - (b) the applicant was not represented by a legal practitioner when bail was refused or revoked; or
 - (c) the order refusing or revoking bail was made by a bail justice.
- (2) Nothing in this section derogates from the right of a person in custody to apply to the Supreme Court for bail.

18AB Hearing and determination of further application for bail

S. 18AB
inserted by
No. 70/2010
s. 15.

An application under section 18 must be conducted as a fresh hearing and determined in accordance with section 4.

18AC Application for variation of bail conditions

S. 18AC
inserted by
No. 70/2010
s. 15.

- (1) A person who has been granted bail, whether or not the person is in custody, may apply for variation of the amount of bail or the conditions of bail.
- (2) The informant or the Director of Public Prosecutions may apply for—
- (a) variation of the amount of bail or the conditions of bail; or
 - (b) the imposition of conditions in respect of bail which has been granted unconditionally.
- (3) An application under subsection (1) or (2) is to be made—
- (a) in the case of a person charged with treason or murder, to the Supreme Court;

S. 18AC(3)(a)
amended by
No. 26/2017
s. 14(15).

S. 18AC(3)(b)
amended by
No. 28/2023
ss 78, 99.

- (b) in any other case, to the court to which the person is required to surrender under the bail undertaking.
- (4) A person may apply for variation of the amount of bail or the conditions of bail if—
 - (a) the person has been granted bail by a bail justice or the Magistrates' Court; and
 - (b) within 24 hours after the grant of bail, the person is unable to meet the conditions of bail.
- (5) An application under subsection (4) is to be made to the bail justice who granted the bail or to the Magistrates' Court.

S. 18AD
inserted by
No. 70/2010
s. 15,
substituted by
No. 3/2018
s. 21.

18AD Determination of application for variation of the amount of bail or bail conditions

On an application under section 18AC, the bail decision maker must take into account the surrounding circumstances and may—

- (a) vary the amount of bail or conditions of bail if it appears to the bail decision maker that it is reasonable to do so having regard to those circumstances; or
- (b) in any other case, dismiss the application.

Note

Section 5 provides for the imposition of conditions of bail.

S. 18AE
inserted by
No. 70/2010
s. 15.

18AE Application for revocation of bail

- (1) The informant or the Director of Public Prosecutions may apply for revocation of bail granted to a person.

S. 18AE(1A)
inserted by
No. 32/2024
s. 903F.

- (1A) Without limiting subsection (1), an application under that subsection may be made because the applicant believes on reasonable grounds that the person—

- (a) has committed an offence since bail was granted; or
 - (b) is likely to commit an offence whilst on bail; or
 - (c) has breached a condition of bail; or
 - (d) is likely to breach a condition of bail or the bail undertaking.
- (2) An application under subsection (1) is to be made—
- (a) in the case of a person charged with treason or murder, to the Supreme Court;
 - (b) in any other case, to the court to which the person is required to surrender under the bail undertaking.

S. 18AE(2)(a)
amended by
No. 26/2017
s. 14(15).

S. 18AE(2)(b)
amended by
No. 28/2023
ss 79, 100.

18AF Determination of application for revocation of bail

S. 18AF
inserted by
No. 70/2010
s. 15.

On an application under section 18AE, the court may either—

- (a) revoke bail; or
- (b) dismiss the application.

18AG Appeal against refusal to revoke bail

S. 18AG
inserted by
No. 70/2010
s. 15.

The Director of Public Prosecutions may appeal to the Supreme Court in the same manner as is provided in section 18A against a refusal to revoke bail if the Director is satisfied that an appeal should be brought in the public interest.

18AH Preservation of the right of application or appeal to the Supreme Court or County Court

S. 18AH
inserted by
No. 70/2010
s. 15.

- (1) Nothing in section 18, 18AA, 18AC or 18AE derogates from any other right of application or appeal to the Supreme Court or the County Court.

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S. 18AH(3)
inserted by
No. 44/2013
s. 6.

- (2) Section 18AI applies to an application to the Supreme Court or the County Court made other than under this Act by an accused for an order to vary the amount of bail or a condition of bail.
- (3) Section 18AK applies to the following applications to the Supreme Court or the County Court made other than under this Act by an accused—
 - (a) a further application for bail;
 - (b) an application for variation of the amount of bail or the conditions of bail.

S. 18AI
(Heading)
amended by
No. 28/2023
s. 53(1).

18AI Notice of application for variation to be given to bail guarantors

S. 18AI
inserted by
No. 70/2010
s. 15.

S. 18AI(1)
amended by
No. 28/2023
s. 53(2).

- (1) If an accused who has been admitted to bail with one or more bail guarantees applies for variation of the amount of bail or the conditions of bail, the accused must give written notice of the application to each bail guarantor.

- (2) Notice under subsection (1) must be—

S. 18AI(2)(c)
amended by
No. 28/2023
s. 53(3).

- (a) in the prescribed form; and
 - (b) given a reasonable time before the hearing of the application; and
 - (c) given personally or by post or by causing the notice to be delivered at the place of residence of the bail guarantor shown in the affidavit of justification for bail.

18AJ Bail guarantor entitled to attend on application for variation

S. 18AJ
(Heading)
amended by
No. 28/2023
s. 54(1).

S. 18AJ
inserted by
No. 70/2010
s. 15.

- (1) A bail guarantor is entitled to attend and give evidence at the hearing of an application made by the person admitted to bail for variation of the amount of bail or the conditions of bail.
- (2) The court may adjourn the hearing of an application referred to in subsection (1) to enable a bail guarantor to attend.

S. 18AJ(1)
amended by
No. 28/2023
s. 54(2).

S. 18AJ(2)
amended by
No. 28/2023
s. 54(3).

18AK Notice of application to be given to informant and either DPP or prosecutor

S. 18AK
inserted by
No. 44/2013
s. 7.

- (1) Subject to subsections (2) and (3), an accused must give notice in the prescribed form of an application under section 18 or an application under section 18AC to—
 - (a) the informant; and
 - (b) the Director of Public Prosecutions or the prosecutor, as the case requires.
- (2) Notice under subsection (1) must be given at least 3 days before the hearing of the application unless—
 - (a) the court is satisfied that—
 - (i) the circumstances of the case justify the application being heard sooner; and
 - (ii) the court will be able to hear and determine the matter adequately despite the limited notice or lack of notice to other parties; or

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- (b) all the parties agree that the period of 3 days be waived.
- (3) Notice under subsection (1) may be dispensed with by the court in the circumstances referred to in subsection (2)(a).

Part 4—Appeals

18A Appeal by Director of Public Prosecutions against insufficiency of bail etc.

Pt 4 (Heading)
inserted by
No. 70/2010
s. 16.

S. 18A
(Heading)
inserted by
No. 70/2010
s. 17(1).

S. 18A
inserted by
No. 9690 s. 4.

- (1) If a person is granted bail, the Director of Public Prosecutions may appeal to the Supreme Court against the order granting bail if—
- (a) the Director is satisfied that—
- (i) the conditions of bail are insufficient;
or
- (ii) the decision to grant bail contravenes this Act; and
- (b) the Director is satisfied that it is in the public interest to do so.
- (2) Where the Director of Public Prosecutions desires to appeal to the Court under subsection (1) the Director shall cause notice of appeal setting forth the grounds thereof to be given to the person granted bail (hereafter in this section called the **respondent**) and to each bail guarantor (if any).
- (3) A notice required to be given to a bail guarantor under subsection (2) may be given personally or by post or by causing the notice to be delivered at the place of residence of the respondent or bail guarantor (as the case requires) shown in the affidavit of justification for bail.

S. 18A(1)
amended by
Nos 9902
s. 2(1)(Sch.
item 2), 10087
s. 3(1)(Sch. 1
item 5),
57/1989
s. 4(1)(d)(i),
substituted by
No. 70/2010
s. 17(2).

S. 18A(2)
amended by
Nos 10084
s. 18(2),
57/1989
s. 4(1)(d)(ii),
28/2023
ss 55(1), 80(1).

S. 18A(3)
amended by
Nos 6/2018
s. 68(Sch. 2
item 13.8),
28/2023
s. 55(2).

S. 18A(4)
amended by
No. 57/1989
s. 4(1)(d)(iii).

- (4) Notice of appeal shall not be given under subsection (1) more than one month after the bail is granted without first obtaining the leave of the Supreme Court.

S. 18A(5)
amended by
Nos 10084
s. 18(2),
35/1996
s. 453(Sch. 1
item 8.3),
25/2023
s. 7(Sch. 1
item 4.1),
28/2023
ss 55(3), 80(2).

- (5) The Director of Public Prosecutions or a legal practitioner on the Director's behalf may appear on behalf of His Majesty on any appeal under this section and any respondent or bail guarantor to whom notice is given under subsection (3) may appear in person or by a legal practitioner.

S. 18A(6)
amended by
No. 68/2009
s. 97(Sch.
item 11.18),
substituted by
No. 70/2010
s. 17(3).

- (6) On an appeal under this section, if the Supreme Court thinks that a different order should have been made, the Supreme Court must set aside the order that is the subject of the appeal and, without limiting the powers of the Supreme Court with respect to bail, conduct a fresh hearing in relation to the grant of bail to the respondent.

S. 18A(7)
amended by
Nos 57/1989
s. 4(1)(d)(iv),
28/2023
s. 80(3).

- (7) If the respondent is not present in Court when an order granting bail is revoked or varied under this section the Court shall cause a warrant to be issued for apprehending the respondent and bringing the respondent before the Court.

S. 18A(8)
amended by
Nos 57/1989
s. 4(1)(d)(v),
70/2010
s. 17(4),
28/2023
s. 80(4).

- (8) If the Court revokes an order granting the respondent bail the Court shall remand the respondent in custody to await trial.

S. 18A(9)
amended by
Nos 68/2009
s. 97(Sch.
item 11.19),
70/2010
s. 17(5),
28/2023
ss 55(4), 80(5).

- (9) If the Court makes an order varying the amount or conditions of bail the Court shall require the respondent to find another bail guarantor or further or other securities for the attendance of the respondent and may remand the respondent in

custody until another bail guarantee or further or other security is provided.

- (10) On the hearing and determination of an appeal under this section no costs shall be allowed on either side.

- (11) A respondent is entitled to be present on the hearing of an appeal under this section notwithstanding that the respondent may be in custody but the Court may make any order under this section where the respondent is for any reason not present.

S. 18A(11)
amended by
No. 28/2023
s. 80(6).

- (12) The respondent or the Director of Public Prosecutions may appeal to the Court of Appeal from a decision of a single judge of the Supreme Court made under this section.

S. 18A(12)
inserted by
No. 70/2010
s. 17(6).

Note

Sections 18AG and 24(4) also provide for certain appeals.

Note to s. 18A
inserted by
No. 70/2010
s. 17(6).

Pt 5 (Heading)
inserted by
No. 70/2010
s. 18.

No. 8731 s. 35.

S. 19(1)
amended by
Nos 68/2009
s. 97(Sch.
items 11.1,
11.20),
28/2023
ss 56(1), 81(1),
101.

S. 19(2)
amended by
Nos 68/2009
s. 97(Sch.
item 11.21),
70/2010
s. 19(1),
28/2023
ss 56(2), 81(2).

S. 19(3)
amended by
Nos 68/2009
s. 97(Sch.
items 11.1,
11.22),
70/2010
s. 19(2),
28/2023
s. 56(3).

No. 8731 s. 36.

S. 20
(Heading)
inserted by
No. 28/2023
s. 57(1).

S. 20
amended by
Nos 68/2009
s. 97(Sch.
item 11.1),
28/2023
ss 57(2), 82.

Part 5—Miscellaneous

19 Arrest on another charge not to vacate bail

- (1) Where an accused is on bail to attend before a court the accused's arrest on another charge shall not vacate the bail undertaking which shall continue to bind the accused and each bail guarantor (if any) until the accused is discharged or sentenced in respect of the offence to which the bail relates.
- (2) Notwithstanding anything to the contrary in subsection (1) where a person arrested on another charge is on bail to attend before a court the court may remand the person in custody or may require the person to furnish new or additional bail guarantees.
- (3) If an accused who is on bail to attend for trial is remanded in custody pursuant to the provisions of subsection (2) each bail guarantor (if any) is discharged.

20 Death of bail guarantor

Where a bail guarantor dies before the bail is forfeited the bail guarantor's estate shall not be subject to any liability in respect of the bail but the accused may be required to find another bail guarantor.

21 Abolition of right of a bail guarantor to apprehend a principal

The common law right of a bail guarantor to apprehend the principal and to bring the principal before a bail justice or a court is abolished.

S. 21
(Heading)
amended by
No. 28/2023
s. 58(1).

S. 21
amended by
Nos 51/1989
s. 142(p)(q),
68/2009
s. 97(Sch.
item 11.23),
substituted by
No. 70/2010
s. 20,
amended by
No. 28/2023
ss 58(2), 83.

* * * * *

S. 22
amended by
Nos 16/1986
s. 30, 68/2009
s. 97(Sch.
item 11.24),
repealed by
No. 70/2010
s. 20.

23 Bail guarantor may apply for discharge

No. 8731 s. 39.

S. 23
(Heading)
inserted by
No. 28/2023
s. 59(1).

- (1) If an accused is released on bail with a bail guarantee, a bail guarantor may at any time apply to the court to which the accused would be required to surrender under the bail undertaking to discharge the applicant from liability with respect to the bail undertaking.
- (2) On an application being made under subsection (1) the court shall issue a warrant for apprehending the accused and bringing the accused before the court.

S. 23(1)
amended by
Nos 9158 s. 5,
68/2009
s. 97(Sch.
item 11.25),
28/2023
ss 59(2), 84(1),
102(1).

S. 23(2)
amended by
Nos 68/2009
s. 97(Sch.
item 11.25(c)),
28/2023
s. 84(2).

S. 23(3)
amended by
Nos 68/2009
s. 97(Sch.
item 11.25
(a)(c)), 28/2023
s. 84(3).

- (3) On the attendance of the accused before the court the court may direct the applicant to be discharged from liability with respect to the undertaking.

S. 23(4)
amended by
Nos 68/2009
s. 97(Sch.
item
11.25(a)(c)),
70/2010 s. 21,
28/2023
ss 59(3), 84(4),
102(2).

- (4) If the court discharges a bail guarantor from liability with respect to a bail undertaking the court shall require the accused to find another bail guarantor or other security for the accused's attendance and may remand the accused in custody until another bail guarantor or further security is provided.

No. 8731 s. 40.

24 Arrest of person released on bail

S. 24(1)
amended by
Nos 43/2011
s. 6(1),
37/2014
s. 10(Sch.
item 8.4(a)).

- (1) Any police officer, or any protective services officer on duty at a designated place, may without warrant arrest any person who has been released on bail—

S. 24(1)(a)
amended by
Nos 68/2009
s. 97(Sch.
item 11.26),
43/2011
s. 6(2),
37/2014
s. 10(Sch.
item 8.4(a)),
28/2023
s. 103(1)(a).

- (a) if the police officer or protective services officer has reasonable grounds for believing that the person is likely to breach the bail undertaking or any condition of bail, or has reasonable cause to suspect that the person is breaching or has breached any such condition;

S. 24(1)(b)
amended by
Nos 68/2009
s. 97(Sch.
item 11.26),
43/2011
s. 6(2),
37/2014
s. 10(Sch.
item 8.4(a)),
28/2023
ss 60(1)(a),
103(1)(b).

- (b) if the police officer or protective services officer is notified in writing by any of the person's bail guarantors that the bail guarantor believes that the person is likely to breach the bail undertaking and for that reason the bail guarantor wishes to be relieved of his obligations as a bail guarantor; or

- | | |
|---|--|
| (c) if the police officer or protective services officer has reasonable grounds for believing that any of the person's bail guarantors are dead, or that for any other reason the security is no longer sufficient. | S. 24(1)(c) amended by Nos 43/2011 s. 6(2), 37/2014 s. 10(Sch. item 8.4(a)), 28/2023 s. 60(1)(b). |
| (1A) If a protective services officer arrests a person under subsection (1), the protective services officer must hand the person into the custody of a police officer as soon as practicable after the person is arrested. | S. 24(1A) inserted by No. 43/2011 s. 6(3), amended by No. 37/2014 s. 10(Sch. item 8.4(a)). |
| (1B) A protective services officer may only exercise the power to arrest without warrant under this section in relation to a person who is at, or in the vicinity of, a designated place. | S. 24(1B) inserted by No. 45/2017 s. 50. |
| (2) If a person is arrested under subsection (1) or is handed into the custody of a police officer by a protective services officer under subsection (1A), a police officer must— | S. 24(2) amended by Nos 51/1989 s. 142(r), 68/2009 s. 97(Sch. item 11.27), substituted by No. 43/2011 s. 6(4), amended by No. 37/2014 s. 10(Sch. item 8.4(a)). |
| (a) bring the person before a bail justice as soon as practicable after the person is arrested or has been handed into the custody of a police officer and in any event within 24 hours thereafter; or | S. 24(2)(a) amended by No. 37/2014 s. 10(Sch. item 8.4(a)). |
| (b) if the person is arrested or handed into the custody of a police officer within 24 hours before the time at which the person is bound by the bail undertaking to attend before a | S. 24(2)(b) amended by Nos 37/2014 s. 10(Sch. item 8.4(a)), 28/2023 s. 103(2). |

court—bring the person before that court at that time.

S. 24(3)
amended by
Nos 51/1989
s. 142(s),
28/2023
s. 103(3)(a).

- (3) Where a person who is on bail is brought before a bail justice or court pursuant to the provisions of paragraph (a) or paragraph (b) of subsection (2) the bail justice or court—

S. 24(3)(a)
substituted by
No. 84/1997
s. 8(1),
amended by
Nos 70/2010
s. 22(1)(a),
28/2023
ss 60(2),
85(a)(ii),
103(3)(b)(i).³

- (a) if of the opinion that the person has breached or is likely to breach the bail undertaking or a condition of bail—may revoke the bail and remand the person in custody with a direction to the officer in charge of the prison—

S. 24(3)(a)(i)
amended by
Nos 68/2009
s. 97(Sch.
item 11.28),
28/2023
s. 103(3)(b)(ii).

- (i) if the direction is given by a court, that the person be brought before the court at the time when the person is required by the bail undertaking to attend; or

S. 24(3)(a)(ii)
substituted by
No. 70/2010
s. 22(1)(b),
amended by
No. 28/2023
s. 85(a)(i).

- (ii) if the direction is given by a bail justice, that the person be brought before the court to which the person was required to surrender in answer to bail on the next working day or, if the next working day is not practicable, within 2 working days—

or release the person on the original undertaking or on a new undertaking with or without a condition that requires one or more bail guarantees; or

S. 24(3)(b)
substituted by
No. 84/1997
s. 8(1),
amended by
No. 28/2023
ss 85(b),
103(3)(c).

- (b) if not of that opinion—shall release the person on the original bail undertaking.

- (3A) Despite subsection (3), if a child is arrested under subsection (1) and is brought before a court, the court must not remand the child in custody for a period longer than 21 clear days. S. 24(3A) inserted by No. 1/2016 s. 15.
- (4) The Director of Public Prosecutions may appeal to the Supreme Court in the same manner as is provided in section 18A against a refusal to revoke bail if the Director is satisfied that it is in the public interest to do so. S. 24(4) inserted by No. 57/1989 s. 4(1)(e), substituted by No. 70/2010 s. 22(2).
- (5) If the bail of a person is revoked under subsection (3), the person may apply under section 18 for an order granting bail. S. 24(5) inserted by No. 84/1997 s. 8(2), amended by No. 70/2010 s. 22(3).
- (6) In this section— S. 24(6) inserted by No. 43/2011 s. 6(5).

designated place has the same meaning as in the **Victoria Police Act 2013**;

S. 24(6) def. of *designated place* substituted by No. 37/2014 s. 10(Sch. item 8.4(b)(i)).

protective services officer has the same meaning as in the **Victoria Police Act 2013**.

S. 24(6) def. of *protective services officer* substituted by No. 37/2014 s. 10(Sch. item 8.4(b)(ii)).

25 Arrest for imposing additional conditions

No. 8731 s. 41.

Where a court is of opinion that it is necessary or advisable in the interests of justice that the conditions of bail of any person should be amended or supplemented, the court may issue a warrant for the apprehension of the accused and

S. 25 amended by No. 68/2009 s. 97(Sch. item 11.29).

may, when the accused is brought before the court amend or supplement the conditions as the court thinks fit.

No. 8731 s. 42.

S. 26(1)
amended by
Nos 70/2010
s. 23, 26/2017
s. 14(16),
28/2023
ss 86(1), 116.

26 Arrest where bail insufficient

- (1) Where the bail decision maker by whom or which a person was admitted to bail is of opinion that the person was released with insufficient security or with security which has become insufficient the bail decision maker by which the person was granted bail may issue a warrant for the person's apprehension directing that the person be brought before a court and may order the person to find sufficient security and, if the person fails to do so, may remand the person in custody.
- (2) Where a person charged with or convicted of an offence has given a bail undertaking and, in breach of the undertaking, fails to attend the court may, without prejudice to any right of action arising out of the undertaking, issue a warrant for the person's apprehension.

S. 26(2)
amended by
Nos 68/2009
s. 97(Sch.
item 11.30),
28/2023
ss 86(2), 104.

No. 8731
s. 148(2).

S. 27
amended by
No. 51/1989
s. 142(t),
84/1997
s. 9 (ILA
s. 39B(1)).

27 Admission to bail

S. 27(1)
amended by
Nos 37/2014
s. 10(Sch.
item 8.5),
26/2017
s. 14(17),
28/2023
s. 105(1).

- (1) Where the conditions of bail have been fixed the bail undertaking (and the required bail guarantees, if any) need not be given before the bail decision maker granting the bail but may be given before any court or before a bail justice or a court official or before a police officer of or above the rank of sergeant or for the time being in charge of a police station or, where any of the parties is in prison, before the governor of the prison or any prison officer thereof of or above the rank

of senior prison officer and thereupon all the consequences of law shall ensue as if the bail undertaking and the bail guarantees, if any, had been given before the bail decision maker granting the bail.

- (1A) For the purposes of subsection (1), it is sufficient compliance with that subsection if a person gives an undertaking in accordance with section 17A or 17B.

S. 27(1A)
inserted by
No. 11/2021
s. 27(1),
amended by
No. 28/2023
s. 105(2).

- (2) In this section, ***court official*** means—

S. 27(2)
inserted by
No. 84/1997
s. 9(2).

- (a) in the case of the Supreme Court, the prothonotary or a deputy prothonotary;
- (b) in the case of the County Court, the registrar or a deputy registrar;
- (c) in the case of the Magistrates' Court, a registrar or deputy registrar;

- (ca) in the case of the Children's Court, a registrar or deputy registrar;

S. 27(2)(ca)
inserted by
No. 11/2021
s. 27(2).

- (d) in the case of an enforcement warrant within the meaning of the **Fines Reform Act 2014**, the sheriff or a person authorised under section 115(5) of that Act.

S. 27(2)(d)
inserted by
No. 32/2006
s. 91(4),
substituted by
No. 47/2014
s. 251.

Example

See also sections 9A(1A) and 9CA of the **Corrections Act 1986** as to persons who may exercise the powers of a police officer under section 27 of this Act.

Example
to s. 27
inserted by
No. 64/2017
s. 28.

No. 8731 s. 24.
S. 28
amended by
No. 68/2009
s. 97(Sch.
items 11.1,
11.31),
substituted by
No. 28/2023
s. 108.

28 One bail undertaking may be given in respect of multiple charges

If a bail decision maker is to grant bail to an accused who is held in custody in relation to charges for 2 or more offences, the bail decision maker may allow the accused to give a single bail undertaking in respect of all the charges.

S. 29
amended by
Nos 9554
s. 2(2)(Sch. 2
item 18), 9690
s. 5(1), 9848
s. 18(1)(Sch.),
68/2009
s. 97(Sch.
items 11.1,
11.32, 11.33),
70/2010 s. 24,
repealed by
No. 65/2016
s. 18.

* * * * *

30 Failure to answer bail

S. 30(1)
amended by
Nos 68/2009
s. 97(Sch.
item 11.34),
1/2016 s. 8,
28/2023
ss 87(1),
106(1).

- (1) Any person released on bail who fails without reasonable cause, the proof whereof lies upon the person, to attend in accordance with the person's bail undertaking and surrender into custody shall be guilty of an offence against this Act.

Penalty: Level 7 imprisonment (2 years maximum).

- (2) In any proceedings against a person for an offence against this section—

S. 30(2)(a)
amended by
Nos 68/2009
s. 97(Sch.
item 11.35(a)),
28/2023
s. 106(2)(a).

- (a) a document purporting to be or to be a copy of a bail undertaking given by the accused and to be certified by an officer of the court having the custody of the document to be the undertaking or a copy of the undertaking with which it is alleged in the proceedings that the accused has failed to comply shall be prima facie evidence of the entry of the

accused into the undertaking and of the conditions of bail; and

- (b) a document purporting to be or to be a copy of a declaration of forfeiture made by a court of a bail undertaking given by the accused and certified by an officer of the court having the custody of the document to relate to the bail undertaking with which it is alleged in the proceedings that the accused has failed to comply shall be prima facie evidence of the failure of the accused to attend in answer to bail and surrender into custody.

S. 30(2)(b) amended by Nos 68/2009 s. 97(Sch. item 11.35), 28/2023 ss 87(2), 106(2)(b).

* * * * *

S. 30(3) amended by Nos 9690 s. 5(2), 9848 s. 18(1)(Sch.), 68/2009 s. 97(Sch. item 11.36), 70/2010 s. 25, repealed by No. 65/2016 s. 19.

30A Offence to commit Schedule 1 offence or Schedule 2 offence while on bail

An accused on bail must not commit a Schedule 1 offence or Schedule 2 offence while on bail.

Penalty: 30 penalty units or 3 months imprisonment.

Note

See sections 16 and 33 of the **Sentencing Act 1991** and sections 411 and 413 of the **Children, Youth and Families Act 2005**.

* * * * *

S. 30A inserted by No. 44/2013 s. 8, amended by No. 1/2016 s. 16, repealed by No. 28/2023 s. 39, new s. 30A inserted by No. 32/2024 s. 903C.

S. 30B inserted by No. 44/2013 s. 8, repealed by No. 28/2023 s. 40.

31 Indemnifying bail guarantor

S. 31
(Heading)
inserted by
No. 28/2023
s. 61(1).

S. 31(1)
amended by
Nos 9554
s. 2(2)(Sch. 2
item 18),
68/2009
s. 97(Sch.
item 11.37),
substituted by
No. 28/2023
s. 109(1).

- (1) A person must not agree with another person to indemnify that other person against any liability which that other person may incur as a bail guarantor.

Penalty: 15 penalty units or imprisonment for 3 months.

S. 31(1A)
inserted by
No. 28/2023
s. 109(1).

- (1A) A person must not indemnify another person against any liability which that other person may incur as a bail guarantor.

Penalty: 15 penalty units or imprisonment for 3 months.

S. 31(1B)
inserted by
No. 28/2023
s. 109(1).

- (1B) A person must not agree to be indemnified against any liability which the person may incur as a bail guarantor.

Penalty: 15 penalty units or imprisonment for 3 months.

S. 31(2)
amended by
No. 28/2023
ss 61(2), 88,
109(2).

- (2) An offence is committed against subsection (1) or (1B) whether the agreement is made before or after the person to be indemnified becomes a bail guarantor and whether or not the person becomes a bail guarantor and whether the agreement contemplates compensation in money or money's worth.

32 Deposit forfeited on failure to attend

Where a deposit of money or other security is made as a condition of bail declared to be forfeited because of the failure of the person released to attend in accordance with the person's bail undertaking the deposit becomes forfeited to His Majesty but the person bailed shall have the same right as a bail guarantor has under section 6 of the **Crown Proceedings Act 1958** to apply for an order varying or rescinding the forfeiture and for that purpose the provisions of the said section 6 shall, so far as those provisions are applicable and with such modifications as are necessary, apply with respect to forfeited deposits of bail and in particular with the modification that any reference in those provisions to a bail guarantor shall be read and construed as a reference to the person bailed.

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S. 32
(Heading)
inserted by
No. 68/2009
s. 97(Sch.
item 11.38).
S. 32
amended by
Nos 68/2009
s. 97(Sch.
item 11.39),
25/2023
s. 7(Sch. 1
item 4.2),
28/2023 ss 62,
89, 107.

S. 32A
inserted by
No. 44/2013
s. 9,
amended by
No. 37/2014
s. 10(Sch.
item 8.6),
repealed by
No. 28/2023
s. 41.

32B Appearing or being brought before a court in a proceeding other than a criminal proceeding

A person in a proceeding, other than a criminal proceeding, may appear before a court for the purposes of any provision of this Act—

- (a) personally; or
- (b) by a legal practitioner representing the person; or
- (c) by another person empowered by law to appear for the person.

S. 32B
inserted by
No. 11/2021
s. 28.

Note

Section 328 of the **Criminal Procedure Act 2009** sets out how a party to a criminal proceeding may appear before a court.

S. 32C
(Heading)
amended by
No. 32/2024
s. 903G(1).

32C Review of certain amendments

S. 32C
inserted by
No. 28/2023
s. 116A.

- (1) The Attorney-General must cause a review to be conducted of the operation of the amendments made to this Act by—

S. 32C(1)
amended by
No. 32/2024
s. 903G(2).

(a) the **Bail Amendment Act 2023**; and

S. 32C(1)(a)
inserted by
No. 32/2024
s. 903G(2).

(b) Part 22.1 of the **Youth Justice Act 2024**
(other than Division 1 of that Part).

S. 32C(1)(b)
inserted by
No. 32/2024
s. 903G(2).

- (2) The review must be commenced no later than 2 years after the commencement of the **Bail Amendment Act 2023**.

- (3) The review must be completed no later than 6 months after it commences.

- (4) The Attorney-General must cause a copy of the review to be laid before each House of the Parliament no later than 14 sitting days after receiving it.

33 Regulations

The Governor in Council may make regulations for or with respect to—

- (a) forms for the purposes of this Act and the particulars required to be given thereon;

- | | |
|--|---|
| (b) the procedures to be followed in granting bail and admitting an accused to bail and upon applications or other proceedings under this Act; | S. 33(b)
amended by
No. 68/2009
s. 97(Sch.
item 11.40). |
| (c) the information to be given to an accused and bail guarantors of any of the requirements of this Act and the giving of such information; and | S. 33(c)
amended by
Nos 68/2009
s. 97(Sch.
item 11.40),
28/2023 s. 63. |
| (d) generally any matter or thing which is required or authorized to be prescribed for carrying this Act into effect. | |

34 Transitional provisions

- | | |
|--|---|
| (1) The amendment of section 4(2)(aa) made by section 48 of the Sentencing and other Acts (Amendment) Act 1997 applies only with respect to a charge for an offence filed after the commencement of that section of that Act. | S. 34
inserted by
No. 48/1997
s. 49,
amended by
No. 84/1997
s. 10
(ILA s. 39B(1)). |
| (2) This Act as amended by Part 2 of the Law and Justice Legislation (Further Amendment) Act 1997 applies only with respect to a charge for an offence filed on or after 1 January 1998. | S. 34(2)
inserted by
No. 84/1997
s. 10. |
| (3) The amendment of section 4(2)(aa) made by section 5 of the Bail (Amendment) Act 1998 applies only with respect to a charge for an offence filed on or after 1 January 1999. | S. 34(3)
inserted by
No. 64/1998
s. 6. |
| (4) The amendments of section 4 made by the Drugs, Poisons and Controlled Substances (Amendment) Act 2001 apply only with respect to a charge for an offence filed on or after the commencement of that Act. | S. 34(4)
inserted by
No. 61/2001
s. 13(3). |
| (5) The amendment of section 4(4) made by section 10 of the Crimes (Property Damage and Computer Offences) Act 2003 applies only with respect to a charge for an offence filed on or after the commencement of that Act. | S. 34(5)
inserted by
No. 10/2003
s. 11. |

S. 34(6)
inserted by
No. 70/2010
s. 26.

- (6) Subject to subsection (7), this Act as amended by a provision of Part 2 of the **Bail Amendment Act 2010** applies only with respect to an application made, or an appeal commenced, or an admission to bail made, under this Act on or after the commencement of that provision of that Act.

S. 34(7)
inserted by
No. 70/2010
s. 26.

- (7) Section 3A as inserted by section 5 of the **Bail Amendment Act 2010** applies to a determination made under this Act on or after the commencement of section 5 of that Act, including the determination of a charge for an offence against section 30, irrespective of when the charge-sheet was filed.

S. 34(8)
inserted by
No. 44/2013
s. 10.

- (8) Section 18(4) applies in respect of any application made on or after the commencement of section 5 of the **Bail Amendment Act 2013**.

S. 34(9)
inserted by
No. 44/2013
s. 10.

- (9) Section 18AK applies in respect of any application made on or after the commencement of section 7 of the **Bail Amendment Act 2013**.

S. 34(10)
inserted by
No. 44/2013
s. 10.

- (10) Section 30A applies in respect of an offence alleged to have been committed on or after the commencement of section 8 of the **Bail Amendment Act 2013**.

S. 34(11)
inserted by
No. 44/2013
s. 10.

- (11) Section 30B applies in respect of an offence alleged to have been committed on or after the commencement of section 8 of the **Bail Amendment Act 2013**.

S. 34(12)
inserted by
No. 44/2013
s. 10.

- (12) For the purposes of subsections (10) and (11), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 8 of the **Bail Amendment Act 2013**, the offence is alleged to have been committed before that commencement.

- | | |
|--|---|
| (13) The amendments made to this Act by section 40 of the Serious Sex Offenders (Detention and Supervision) and Other Acts Amendment Act 2015 apply only to a proceeding with respect to bail that commences on or after the commencement of that section. | S. 34(13)
inserted by
No. 52/2015
s. 41. |
| (14) The amendments made to this Act by Division 1 of Part 2 of the Bail Amendment Act 2016 apply to an application made, or an appeal commenced, under this Act on or after the commencement of Division 1 of Part 2 of that Act. | S. 34(14)
inserted by
No. 1/2016
s. 17. |
| (15) The amendment made to section 4 of this Act by section 7 of the Bail Amendment Act 2016 applies to an application made, or an appeal commenced, under this Act on or after the commencement of section 7 of that Act. | S. 34(15)
inserted by
No. 1/2016
s. 17. |
| (16) Section 5AA as inserted by section 11 of the Bail Amendment Act 2016 applies to the first hearing following the grant of bail at which the child is present that occurs on or after the commencement of section 11 of that Act, regardless of when the bail was granted. | S. 34(16)
inserted by
No. 1/2016
s. 17. |
| (17) The amendments made to section 30A of this Act by section 16 of the Bail Amendment Act 2016 apply on and after the commencement of section 16 of that Act, regardless of when the offence is alleged to have been committed. | S. 34(17)
inserted by
No. 1/2016
s. 17. |
| (18) An amendment made to this Act by a provision of Part 2 of the Bail Amendment (Stage One) Act 2017 applies to an application made, or an appeal commenced, under this Act on or after the commencement of that provision, regardless of when the offence is alleged to have been committed. | S. 34(18)
inserted by
No. 26/2017
s. 12. |

S. 34(19)
inserted by
No. 3/2018
s. 22.

- (19) An amendment made to this Act by a provision of Part 2 of the **Bail Amendment (Stage Two) Act 2018** applies to an application made, or an appeal commenced, under this Act on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.

S. 34(20)
inserted by
No. 32/2018
s. 99.

- (20) An amendment made to this Act by a provision of Part 3 of the **Justice Legislation Amendment (Terrorism) Act 2018** applies to an application made, or an appeal commenced, under this Act on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.

S. 34(21)
inserted by
No. 11/2021
s. 29.

- (21) Any amendment made to this Act by Part 3 of the **Justice Legislation Amendment (System Enhancements and Other Matters) Act 2021** applies to any hearing under this Act or any application made under this Act on or after the commencement of the applicable provision of that Part, regardless of—
- (a) when the charge sheet was filed; or
 - (b) when the offence is alleged to have been committed.

S. 34(22)
inserted by
No. 28/2023
s. 119.

- (22) An amendment made to this Act by a provision of the **Bail Amendment Act 2023** applies to an application made, or an appeal commenced, under this Act on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.

S. 34(23)
inserted by
No. 28/2023
s. 119.

- (23) On and after the commencement of Division 1 of Part 5 of the **Bail Amendment Act 2023**—
- (a) for each person who, immediately before that commencement, was a surety under this Act as then in force—

- (i) the person is taken to be a bail guarantor; and
 - (ii) the undertaking constituting the surety is taken to be a bail guarantee; and
 - (iii) the amount of the surety is taken to be the amount of the bail guarantee; and
- (b) unless the contrary intention appears, a reference, however described, to a surety in relation to bail—
- (i) in any Act (other than this Act); or
 - (ii) in any subordinate instrument; or
 - (iii) in any other document—

is taken, so far as the document relates to any period after that commencement, to be a reference to a bail guarantor, a bail guarantee, or the amount of a bail guarantee, whichever the context requires.

- (24) An amendment made to this Act by a provision of Chapter 22 of the **Youth Justice Act 2024** applies to an application made, or an appeal commenced, under this Act on or after the commencement of that provision, regardless of when the offence is alleged to have been committed.
- (24A) Section 30A applies in respect of an offence alleged to have been committed on or after the commencement of section 903C of the **Youth Justice Act 2024**.

S. 34(24)
inserted by
No. 32/2024
s. 904.

S. 34(24A)
inserted by
No. 32/2024
s. 904.

Bail Act 1977
No. 9008 of 1977

Pt 6
(Heading and
ss 34A–34D)
inserted by
No. 11/2020
s. 24,
amended by
No. 27/2020
s. 19,
repealed by
No. 9008/1977
s. 34D (as
amended by
No. 27/2020
s. 19).

* * * *

Sch.
amended by
No. 9059
s. 2(1)(Sch.
items 1–5),
repealed by
No. 9863 s. 2.

* * * *

Schedule 1—Schedule 1 offences

Sch. 1
(Heading)
amended by
No. 32/2018
s. 97(1).

Sch. 1
inserted by
No. 26/2017
s. 13.

Notes

Notes to
Sch. 1
inserted by
No. 32/2018
s. 97(2),
substituted by
No. 28/2023
s. 24.

- 1 Section 4AA(1) sets out when a person who is accused of an offence in this Schedule will be subject to the step 1—exceptional circumstances test.
- 2 However, the step 1—exceptional circumstances test also applies in other circumstances. See section 4AA(2).

1. Treason.
2. Murder.

* * * * *

Sch. 1 item 3
amended by
No. 3/2018
s. 23(12),
repealed by
No. 32/2018
s. 97(3).

4. An offence against section 77B of the **Crimes Act 1958** (aggravated home invasion).
5. An offence against section 79A of the **Crimes Act 1958** (aggravated carjacking).
6. An offence against any of the following provisions of the **Drugs, Poisons and Controlled Substances Act 1981**—
 - (a) section 71 (trafficking in a quantity of a drug or drugs of dependence that is not less than the large commercial quantity applicable to that drug or those drugs);

Sch. 1
item 6(b)
amended by
No. 3/2019
s. 19(1).

(b) section 71AA(1) (trafficking in a quantity of a drug or drugs of dependence that is not less than the commercial quantity applicable to that drug or those drugs);

Sch. 1
item 6(ba)
inserted by
No. 3/2019
s. 19(2).

(ba) section 71AA(2) (trafficking in a quantity of a drug or drugs of dependence that is not less than the commercial quantity applicable to that drug or those drugs for the benefit of or at the direction of a criminal organisation);

(c) section 72 (cultivation of a narcotic plant in a quantity of a drug of dependence, being a narcotic plant, that is not less than the large commercial quantity applicable to that narcotic plant);

(d) section 72A (cultivation of a narcotic plant in a quantity of a drug of dependence, being a narcotic plant, that is not less than the commercial quantity applicable to that narcotic plant);

Sch. 1
item 6(e)
amended by
No. 3/2019
s. 19(3).

(e) section 79(1) (conspiracy) in circumstances where the conspiracy is to commit an offence referred to in paragraph (a), (b), (ba), (c) or (d).

7. An offence against any of the following provisions of the **Drugs, Poisons and Controlled Substances Act 1981** (as in force immediately before the commencement of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2001**)—

(a) section 71(1) (trafficking in a drug of dependence) in circumstances where the offence is committed in relation to a quantity of a drug of dependence that is not less than the commercial quantity applicable to that drug of dependence;

(b) section 72(1) (cultivation of narcotic plants) in circumstances where the offence is committed in relation to a quantity of a drug of dependence, being a narcotic plant, that is not less than the

commercial quantity applicable to that narcotic plant;

(c) section 79(1) (conspiracy) in circumstances where the conspiracy is to commit an offence referred to in paragraph (a) or (b).

8. An offence against section 302.2, 302.3, 303.4, 303.5, 304.1, 304.2, 305.3 or 305.4 of the Criminal Code of the Commonwealth in circumstances where the offence is committed in relation to a substance in respect of a quantity that is not less than the commercial quantity (as defined in section 70(1) of the **Drugs, Poisons and Controlled Substances Act 1981**) applicable to the drug of dependence as defined in that Act constituted by that substance.
9. An offence against section 307.1, 307.2, 307.5, 307.6, 307.8 or 307.9 of the Criminal Code of the Commonwealth in circumstances where the offence is committed in relation to a substance in respect of a quantity that is not less than the commercial quantity (as defined in section 70(1) of the **Drugs, Poisons and Controlled Substances Act 1981**) applicable to the drug of dependence as defined in that Act constituted by that substance.
10. An offence under section 231(1), 233A or 233B(1) of the Customs Act 1901 of the Commonwealth (as in force immediately before the commencement of the Law and Justice Legislation Amendment (Serious Drug Offences and Other Measures) Act 2005 of the Commonwealth) in circumstances where the offence is committed in relation to narcotic goods within the meaning of that Act in respect of a quantity that is not less than the commercial quantity (as defined in section 70(1) of the **Drugs, Poisons and Controlled Substances Act 1981**) applicable to the drug of dependence as defined in that Act constituted by those narcotic goods.
11. An offence against section 4B(1) or 21W of the **Terrorism (Community Protection) Act 2003**.

Bail Act 1977
No. 9008 of 1977
Schedule 1—Schedule 1 offences

Sch. 1 item 13
inserted by
No. 28/2023
s. 27.

12. An offence of conspiracy to commit, incitement to commit or attempting to commit an offence referred to in any other item of this Schedule.
13. Any other offence the necessary elements of which consist of elements that constitute an offence referred to in any other item of this Schedule.

Schedule 2—Schedule 2 offences

Sch. 2
(Heading)
amended by
No. 32/2018
s. 98(1).

Sch. 2
inserted by
No. 26/2017
s. 13.

Note

Note to Sch. 2
inserted by
No. 32/2018
s. 98(2).

Section 4AA(2) and (3) set out whether a person who is accused of an offence in this Schedule will be subject to the exceptional circumstances test or the show compelling reason test.

* * * * *

Sch. 2 item 1
repealed by
No. 28/2023
s. 8(a).

2. Manslaughter.
3. Child homicide.
- 3A. Homicide by firearm.

Sch. 2 item 3A
inserted by
No. 16/2020
s. 10.

4. An offence against section 15A(1) of the **Crimes Act 1958** (causing serious injury intentionally in circumstances of gross violence).
5. An offence against section 15B(1) of the **Crimes Act 1958** (causing serious injury recklessly in circumstances of gross violence).
6. An offence against section 16 of the **Crimes Act 1958** (causing serious injury intentionally).
7. An offence against section 20 of the **Crimes Act 1958** (threats to kill) that is also a family violence offence.

8. An offence against section 21A(1) of the **Crimes Act 1958** (stalking) and—
 - (a) the accused has within the preceding 10 years been convicted or found guilty of an offence against that section in relation to any person or an offence in the course of committing which the accused used or threatened to use violence against any person; or
 - (b) the bail decision maker is satisfied that the accused on a separate occasion used or threatened to use violence against the person whom the accused is alleged to have stalked, whether or not the accused has been convicted or found guilty of, or charged with, an offence in connection with that use or threatened use of violence.
9. An offence against section 38(1) of the **Crimes Act 1958** (rape).
10. An offence against section 39(1) of the **Crimes Act 1958** (rape by compelling sexual penetration).
11. An offence against section 42(1) of the **Crimes Act 1958** (assault with intent to commit a sexual offence).
12. An offence against section 47(1) of the **Crimes Act 1958** (abduction or detention for a sexual purpose).
13. An offence against section 49A(1) of the **Crimes Act 1958** (sexual penetration of a child under the age of 12).
14. An offence against section 49B(1) of the **Crimes Act 1958** (sexual penetration of a child under the age of 16) in circumstances other than where at the time of the alleged offence the child was 12 years of age or more and the accused was not more than 2 years older than the child.
15. An offence against section 49J(1) of the **Crimes Act 1958** (persistent sexual abuse of a child under the age of 16).

16. An offence against section 49P(1) of the **Crimes Act 1958** (abduction or detention of a child under the age of 16 for a sexual purpose).
17. An offence against any of the following provisions of Subdivision (8C) of Division 1 of Part I of the **Crimes Act 1958** (incest) in circumstances other than where both people are aged 18 or older—
 - (a) section 50C(1) (sexual penetration of a child or lineal descendant);
 - (b) section 50D(1) (sexual penetration of a step-child);
 - (c) section 50E(1) (sexual penetration of a parent, lineal ancestor or step-parent);
 - (d) section 50F(1) (sexual penetration of a sibling or half-sibling).
18. An offence against section 37, 37A, 123 or 123A of the **Family Violence Protection Act 2008** of contravening a family violence intervention order or family violence safety notice (as the case requires) in the course of committing which the accused is alleged to have used or threatened to use violence and—
 - (a) the accused has within the preceding 10 years been convicted or found guilty of an offence in the course of committing which the accused used or threatened to use violence against any person; or
 - (b) the bail decision maker is satisfied that the accused on a separate occasion used or threatened to use violence against the person who is the subject of the order or notice, whether or not the accused has been convicted or found guilty of, or charged with, an offence in connection with that use or threatened use of violence.
19. An offence against section 125A(1) of the **Family Violence Protection Act 2008** (persistent contravention of notices and orders).

20. An offence against section 100 of the **Personal Safety Intervention Orders Act 2010** of contravening an order in the course of committing which the accused is alleged to have used or threatened to use violence and—
- (a) the accused has within the preceding 10 years been convicted or found guilty of an offence in the course of committing which the accused used or threatened to use violence against any person; or
 - (b) the bail decision maker is satisfied that the accused on a separate occasion used or threatened to use violence against the person who is the subject of the order, whether or not the accused has been convicted or found guilty of, or charged with, an offence in connection with that use or threatened use of violence.
21. An offence against section 63A of the **Crimes Act 1958** (kidnapping).
22. An offence against any of the following provisions of the **Crimes Act 1958**—
- (aa) section 31C (discharging a firearm reckless to safety of a police officer or a protective services officer) in circumstances where the offender's conduct is alleged to have created a risk to the physical safety of the victim or to any member of the public;
 - (a) section 75A(1) (armed robbery);
 - (b) section 77 (aggravated burglary);
 - (c) section 77A (home invasion);
 - (d) section 79 (carjacking);
 - (e) section 197A (arson causing death);

Sch. 2
item 22(aa)
inserted by
No. 3/2019
s. 6(1).

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- | | |
|--|--|
| (ea) section 317AC (intentionally exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving); | Sch. 2
item 22(ea)
inserted by
No. 65/2017
s. 21,
amended by
No. 65/2017
s. 22. |
| (eb) section 317AD (aggravated offence of intentionally exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving); | Sch. 2
item 22(eb)
inserted by
No. 65/2017
s. 21,
amended by
No. 65/2017
s. 22. |
| (ec) section 317AE (recklessly exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving); | Sch. 2
item 22(ec)
inserted by
No. 65/2017
s. 21,
amended by
No. 65/2017
s. 22. |
| (ed) section 317AF (aggravated offence of recklessly exposing an emergency worker, a custodial officer or a youth justice custodial worker to risk by driving); | Sch. 2
item 22(ed)
inserted by
No. 65/2017
s. 21,
amended by
No. 65/2017
s. 22. |
| (ee) section 317AG (damaging an emergency service vehicle); | Sch. 2
item 22(ee)
inserted by
No. 65/2017
s. 21. |
| (f) section 318(1) (culpable driving causing death); | |
| (g) section 319(1) or (1A) (dangerous driving causing death or serious injury); | |
| (h) section 319AA(1) (dangerous or negligent driving while pursued by police). | |

Sch. 2
item 23A
inserted by
No. 3/2019
s. 6(2).

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23. Any indictable offence in the course of committing which the accused, or any person involved in the commission of the offence, is alleged to have used or threatened to use a firearm, offensive weapon, or explosive as defined by section 77 of the **Crimes Act 1958**.
- 23A. An offence of common assault that is alleged to have been committed in the circumstances referred to in section 320A(1) or (2) of the **Crimes Act 1958** and it is alleged that the assault consisted of or included the direct application of force within the meaning of the definition of **assault** in section 31(2) of that Act.
24. An offence against any of the following provisions of the **Drugs, Poisons and Controlled Substances Act 1981**—
- (a) section 71AB (trafficking in a drug or drugs of dependence to a child);
 - (b) section 71AC (trafficking in a drug of dependence);
 - (c) section 72B (cultivation of narcotic plants);
 - (d) section 79(1) (conspiracy) in circumstances where the conspiracy is to commit an offence referred to in paragraph (a), (b) or (c).
25. An offence against any of the following provisions of the **Drugs, Poisons and Controlled Substances Act 1981** (as in force immediately before the commencement of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2001**)—
- (a) section 71(1) (trafficking in a drug of dependence);
 - (b) section 72(1) (cultivation of narcotic plants);
 - (c) section 79(1) (conspiracy) in circumstances where the conspiracy is to commit an offence referred to in paragraph (a) or (b).

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26. An offence against section 302.2, 302.3, 303.4, 303.5, 304.1, 304.2, 305.3, 305.4, 306.2, 307.1, 307.2, 307.5, 307.6, 307.8, 307.9, 307.11, 309.3, 309.4, 309.7, 309.8, 309.10, 309.11, 309.12, 309.13, 309.14 or 309.15 of the Criminal Code of the Commonwealth.
27. An offence under section 231(1), 233A or 233B(1) of the Customs Act 1901 of the Commonwealth (as in force immediately before the commencement of the Law and Justice Legislation Amendment (Serious Drug Offences and Other Measures) Act 2005 of the Commonwealth) in circumstances where the offence is committed in relation to a commercial or trafficable quantity of narcotic goods within the meaning of that Act.
28. An indictable offence that is alleged to have been committed while the accused is the subject of a supervision order, or interim supervision order, within the meaning of the **Serious Offenders Act 2018**. Sch. 2 item 28 amended by No. 27/2018 s. 352.
29. An indictable offence, and the accused, at any time during the proceeding with respect to bail, is the subject of a supervision order, or interim supervision order, within the meaning of the **Serious Offenders Act 2018**. Sch. 2 item 29 amended by No. 27/2018 s. 352.
- * * * * *
- Sch. 2 item 30 repealed by No. 28/2023 s. 8(b).
31. An offence of conspiracy to commit, incitement to commit or attempting to commit an offence referred to in any other item of this Schedule.
32. Any other offence the necessary elements of which consist of elements that constitute an offence referred to in any other item of this Schedule. Sch. 2 item 32 inserted by No. 28/2023 s. 28.

Sch. 3
inserted by
No. 28/2023
s. 11.

Schedule 3—Exceptions to prohibition on refusing bail

Notes

- 1 Section 4AAA(1) prohibits a bail decision maker from refusing a person bail in certain circumstances. One of those circumstances is that every offence of which the person is accused is an offence against the **Summary Offences Act 1966** that is not listed in this Schedule.
 - 2 Section 12B(2A) prohibits a court from remanding a person in custody where that person is subject to a summons to answer to a charge for an offence, and the person has come before the court and the hearing of the criminal proceeding is to be adjourned. The prohibition applies in certain circumstances. One of those circumstances is that every offence of which the person is accused is an offence against the **Summary Offences Act 1966** that is not listed in this Schedule.
1. An offence against section 19(1) of the **Summary Offences Act 1966** (sexual exposure).
 2. An offence against section 23 of the **Summary Offences Act 1966** (common assault).
 3. An offence referred to in section 24(1) or (2) of the **Summary Offences Act 1966** (aggravated assault).
 4. An offence against section 41A of the **Summary Offences Act 1966** (observation of genital or anal region).
 5. An offence against section 41B of the **Summary Offences Act 1966** (visually capturing genital or anal region) as in force before its repeal.
 6. An offence against section 41C of the **Summary Offences Act 1966** (distribution of image of genital or anal region) as in force before its repeal.
 7. An offence against section 41DA(1) of the **Summary Offences Act 1966** (distribution of intimate image) as in force before its repeal.

8. An offence against section 41DB(1) of the **Summary Offences Act 1966** (threat to distribute intimate image) as in force before its repeal.
 9. An offence against section 41H(2) of the **Summary Offences Act 1966** (food or drink spiking).
 10. An offence against section 41K(1) of the **Summary Offences Act 1966** (public display of Nazi symbols).
 11. An offence against section 51(2), (3) or (4) of the **Summary Offences Act 1966** (assaulting, etc. emergency workers, custodial officers, youth justice custodial workers or local authority staff on duty).
 12. An offence against section 51A(1) or (2) of the **Summary Offences Act 1966** (assaulting registered health practitioners).
 13. An offence against section 52A of the **Summary Offences Act 1966** (offence to harass witness etc.).
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Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

The **Bail Act 1977** was assented to on 10 May 1977 and came into operation on 1 September 1977: Government Gazette 17 August 1977 page 2654.

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

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2 Table of Amendments

This publication incorporates amendments made to the **Bail Act 1977** by Acts and subordinate instruments.

Bail Act 1977, No. 9008/1977

<i>Assent Date:</i>	10.5.77
<i>Commencement Date:</i>	S. 34D inserted on 25.4.20 by No. 11/2020 s. 24: s. 2 (as amended by No. 27/2020 s. 19)
<i>Note:</i>	S. 34D repealed Pt 6 (ss 34A–34D) on 26.4.21
<i>Current State:</i>	This information relates only to the provision/s amending the Bail Act 1977

Statute Law Revision Act 1977, No. 9059/1977

<i>Assent Date:</i>	29.11.77
<i>Commencement Date:</i>	29.11.77: subject to s. 2
<i>Current State:</i>	All of Act in operation

Age of Majority Act 1977, No. 9075/1977

<i>Assent Date:</i>	6.12.77
<i>Commencement Date:</i>	1.2.78: Government Gazette 11.1.78 p. 97
<i>Current State:</i>	All of Act in operation

Bail (Amendment) Act 1978, No. 9158/1978

<i>Assent Date:</i>	30.5.78
<i>Commencement Date:</i>	1.10.78: Government Gazette 6.9.78 p. 2869
<i>Current State:</i>	All of Act in operation

Statute Law Revision Act 1980, No. 9427/1980

<i>Assent Date:</i>	27.5.80
<i>Commencement Date:</i>	27.5.80: subject to s. 6(2)
<i>Current State:</i>	All of Act in operation

Penalties and Sentences Act 1981, No. 9554/1981

<i>Assent Date:</i>	19.5.81
<i>Commencement Date:</i>	S. 44 on 26.9.80: s. 1(3); ss 1, 36–46 on 3.6.81: Government Gazette 3.6.81 p. 1778; rest of Act on 1.9.81: Government Gazette 26.8.81 p. 2799
<i>Current State:</i>	All of Act in operation

Bail (Amendment) Act 1981, No. 9690/1981

<i>Assent Date:</i>	5.1.82
<i>Commencement Date:</i>	5.1.82
<i>Current State:</i>	All of Act in operation

Director of Public Prosecutions Act 1982, No. 9848/1982

<i>Assent Date:</i>	21.12.82
<i>Commencement Date:</i>	Ss 1–8, 17 on 12.1.83: Government Gazette 12.1.83 p. 80; rest of Act on 1.6.83: Government Gazette 11.5.83 p. 1146
<i>Current State:</i>	All of Act in operation

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Statute Law Revision (Repeals) Act 1982, No. 9863/1982

Assent Date: 5.1.83
Commencement Date: 5.1.83
Current State: All of Act in operation

Statute Law Revision Act 1983, No. 9902/1983

Assent Date: 15.6.83
Commencement Date: 15.6.83: subject to s. 2(2)
Current State: All of Act in operation

**Drugs, Poisons and Controlled Substances (Amendment) Act 1983,
No. 10002/1983**

Assent Date: 13.12.83
Commencement Date: 18.12.83: Government Gazette 14.12.83 p. 3954
Current State: All of Act in operation

Crimes (General Amendment) Act 1984, No. 10084/1984

Assent Date: 22.5.84
Commencement Date: 1.7.84: Government Gazette 27.6.84 p. 2119
Current State: All of Act in operation

Statute Law Revision Act 1984, No. 10087/1984

Assent Date: 22.5.84
Commencement Date: 22.5.84: subject to s. 3(2)
Current State: All of Act in operation

Coroners Act 1985, No. 10257/1985

Assent Date: 10.12.85
Commencement Date: Ss 1–3, Pt 9 on 12.2.86: Government Gazette 12.2.86 p. 382; rest of Act on 1.6.86: Government Gazette 30.4.86 p. 1115
Current State: All of Act in operation

Courts Amendment Act 1986, No. 16/1986

Assent Date: 22.4.86
Commencement Date: Ss 1–11, 13–27, 29–34 on 1.7.86: Government Gazette 25.6.86 p. 2180; s. 28 on 1.9.86: Government Gazette 27.8.86 p. 3201; s. 12 on 1.1.88: Government Gazette 7.10.87 p. 2701
Current State: All of Act in operation

Bail (Amendment) Act 1986, No. 89/1986

Assent Date: 16.2.86
Commencement Date: Pts 1, 2 on 15.2.87: Government Gazette 11.2.87 p. 291; Pt 3 on 3.8.87: Government Gazette 24.6.87 p. 1600
Current State: All of Act in operation

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Community Services Act 1987, No. 16/1987

Assent Date: 12.5.87
Commencement Date: Ss 1–6, 9–13, Sch. 1 on 22.2.89: Government Gazette 22.2.89 p. 386; Sch. 2 items 1–13 on 15.3.89: Government Gazette 15.3.89 p. 587; rest of Act on 25.6.92: Government Gazette 24.6.92 p. 1532
Current State: All of Act in operation

County Court (Amendment) Act 1989, No. 19/1989

Assent Date: 16.5.89
Commencement Date: 16.5.89: Government Gazette 26.7.89 p. 1858
Current State: All of Act in operation

Magistrates' Court Act 1989, No. 51/1989

Assent Date: 14.6.89
Commencement Date: S. 16(4) on 15.6.89: Special Gazette (No. 32) 15.6.89 p. 1; ss 16(5), 52, 141(3)(a)–(f) on 1.9.89: Government Gazette 30.8.89 p. 2210; rest of Act on 1.1.90: Government Gazette 25.7.90 p. 2216
Current State: All of Act in operation

Children and Young Persons Act 1989, No. 56/1989

Assent Date: 14.6.89
Commencement Date: S. 286 on 31.1.91: Special Gazette (No. 9) 31.1.91 p. 2; Sch. 2 item 2.1 on 23.9.91: Government Gazette 28.8.91 p. 2368; Sch. 2 items 2.2 and 2.3 on 30.9.92: Government Gazette 26.8.92 p. 2470
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Magistrates' Court (Consequential Amendments) Act 1989, No. 57/1989

Assent Date: 14.6.89
Commencement Date: S. 4(1)(a)–(e)(2) on 1.9.89: Government Gazette 30.8.89 p. 2210; rest of Act on 1.9.90: Government Gazette 25.7.90 p. 2217
Current State: All of Act in operation

Medical Practice Act 1994, No. 23/1994

Assent Date: 17.5.94
Commencement Date: Ss 1, 2 on 17.5.94; rest of Act on 1.7.94: Government Gazette 23.6.94 p. 1672
Current State: All of Act in operation

Crimes (Amendment) Act 1994, No. 95/1994

Assent Date: 13.12.94
Commencement Date: Pt 1 (ss 1, 2) on 13.12.94; ss 3–10 on 23.1.95: Government Gazette 19.1.95 p. 121; rest of Act on 13.6.95: s. 2(3)
Current State: All of Act in operation

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Legal Practice Act 1996, No. 35/1996

Assent Date: 6.11.96
Commencement Date: S. 453(Sch. 1 items 8.1–8.3) on 1.1.97: s. 2(3)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Sentencing and Other Acts (Amendment) Act 1997, No. 48/1997

Assent Date: 11.6.97
Commencement Date: Ss 48, 49 on 1.9.97: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Law and Justice Legislation (Further Amendment) Act 1997, No. 84/1997

Assent Date: 2.12.97
Commencement Date: Ss 3–10 on 1.1.98: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail (Amendment) Act 1998, No. 64/1998

Assent Date: 4.11.98
Commencement Date: 1.1.99: s. 2
Current State: All of Act in operation

Statute Law Amendment (Authorised Deposit-taking Institutions) Act 2001, No. 11/2001

Assent Date: 8.5.01
Commencement Date: S. 3(Sch. item 5) on 1.6.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Drugs, Poisons and Controlled Substances (Amendment) Act 2001, No. 61/2001

Assent Date: 23.10.01
Commencement Date: S. 13 on 1.1.02: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Criminal Justice Legislation (Miscellaneous Amendments) Act 2002, No. 35/2002

Assent Date: 18.6.02
Commencement Date: Ss 25(1), 28(Sch. item 1) on 19.6.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Crimes (Property Damage and Computer Offences) Act 2003, No. 10/2003

Assent Date: 6.5.03
Commencement Date: Ss 10, 11 on 7.5.03: s. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

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Justice Legislation (Sexual Offences and Bail) Act 2004, No. 20/2004

Assent Date: 18.5.04
Commencement Date: Ss 10–12 on 19.5.04: s. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Legal Profession (Consequential Amendments) Act 2005, No. 18/2005

Assent Date: 24.5.05
Commencement Date: S. 18(Sch. 1 item 9) on 12.12.05: Government Gazette 1.12.05 p. 2781
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Children and Young Persons (Miscellaneous Amendments) 2005, No. 21/2005

Assent Date: 31.5.05
Commencement Date: S. 60 on 1.7.05: s. 2(6)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Act 2005, No. 93/2005

Assent Date: 29.11.05
Commencement Date: S. 13 on 30.11.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Health Professions Registration Act 2005, No. 97/2005

Assent Date: 7.12.05
Commencement Date: S. 182(Sch. 4 item 4) on 1.7.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Infringements (Consequential and Other Amendments) Act 2006, No. 32/2006

Assent Date: 13.6.06
Commencement Date: S. 91 on 1.7.06: Government Gazette 29.6.06 p. 1315
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Children, Youth and Families (Consequential and Other Amendments) Act 2006, No. 48/2006

Assent Date: 15.8.06
Commencement Date: S. 42(Sch. item 4) on 23.4.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Family Violence Protection Act 2008, No. 52/2008

Assent Date: 23.9.08
Commencement Date: S. 233 on 8.12.08: Special Gazette (No. 339) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

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Stalking Intervention Orders Act 2008, No. 68/2008

Assent Date: 18.11.08
Commencement Date: S. 63 on 8.12.08: Special Gazette (No. 339) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 11) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Statute Law Amendment (Evidence Consequential Provisions) Act 2009, No. 69/2009

Assent Date: 24.11.09
Commencement Date: S. 54(Sch. Pt 1 item 4), (Sch. Pt 2 item 6) on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Statute Law Amendment (National Health Practitioner Regulation) Act 2010, No. 13/2010

Assent Date: 30.3.10
Commencement Date: S. 51(Sch. item 7) on 1.7.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Personal Safety Intervention Orders Act 2010, No. 53/2010

Assent Date: 7.9.10
Commencement Date: S. 221(Sch. item 1) on 5.9.11: Special Gazette (No. 271) 23.8.11 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Amendment Act 2010, No. 70/2010

Assent Date: 19.10.10
Commencement Date: Ss 3–26 on 1.1.11: s. 2(3)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Justice Legislation Amendment (Protective Services Officers) Act 2011, No. 43/2011

Assent Date: 6.9.11
Commencement Date: S. 6 on 28.11.11: Special Gazette (No. 379) 22.11.11 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

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Justice Legislation Amendment (Family Violence and Other Matters) Act 2012, No. 83/2012

Assent Date: 18.12.12
Commencement Date: S. 31(1) on 17.4.13: Special Gazette (No. 141) 16.4.13 p. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Amendment Act 2013, No. 44/2013

Assent Date: 27.8.13
Commencement Date: 20.12.13: Special Gazette (No. 419) 26.11.13 p. 1
Current State: All of Act in operation

Legal Profession Uniform Law Application Act 2014, No. 17/2014

Assent Date: 25.3.14
Commencement Date: S. 160(Sch. 2 item 10) on 1.7.15: Special Gazette (No. 151) 16.6.15 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Honorary Justices Act 2014, No. 32/2014

Assent Date: 13.5.14
Commencement Date: S. 56 on 1.9.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Victoria Police Amendment (Consequential and Other Matters) Act 2014, No. 37/2014

Assent Date: 3.6.14
Commencement Date: S. 10(Sch. item 8) on 1.7.14: Special Gazette (No. 200) 24.6.14 p. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Fines Reform Act 2014, No. 47/2014 (as amended by No. 59/2017)

Assent Date: 1.7.14
Commencement Date: Ss 250, 251 on 31.12.17: Special Gazette (No. 443) 19.12.17 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Crimes Amendment (Abolition of Defensive Homicide) Act 2014, No. 63/2014

Assent Date: 9.9.14
Commencement Date: S. 7(1)(2) on 1.11.14: Special Gazette (No. 350) 7.10.14 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Serious Sex Offenders (Detention and Supervision) and Other Acts Amendment Act, No. 52/2015

Assent Date: 13.10.15
Commencement Date: Ss 40, 41 on 14.10.15: s. 2(1)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Act 1977
No. 9008 of 1977
Endnotes

Bail Amendment Act 2016, No. 1/2016

Assent Date: 16.2.16
Commencement Date: Ss 3–17 on 2.5.16: Special Gazette (No. 103) 19.4.16 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Crimes Amendment (Carjacking and Home Invasion) Act 2016, No. 50/2016

Assent Date: 18.10.16
Commencement Date: S. 7 on 7.12.16: Special Gazette (No. 375) 6.12.16 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Sentencing (Community Correction Order) and Other Acts Amendment Act 2016, No. 65/2016

Assent Date: 15.11.16
Commencement Date: Ss 18, 19 on 20.3.17: Special Gazette (No. 17) 31.1.17 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Amendment (Stage One) Act 2017, No. 26/2017

Assent Date: 27.6.17
Commencement Date: Ss 3–10, 12–14(9), 14(11)–16 on 21.5.18: Special Gazette (No. 218) 15.5.18 p. 1, ss 11, 14(10) on 1.7.18: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Children and Justice Legislation Amendment (Youth Justice Reform) Act 2017, No. 43/2017

Assent Date: 26.9.17
Commencement Date: S. 37 on 26.2.18: Special Gazette (No. 406) 28.11.17 p. 1; s. 38 on 5.4.18: Special Gazette (No. 136) 27.3.18 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Justice Legislation Amendment (Protective Services Officers and Other Matters) Act 2017, No. 45/2017

Assent Date: 26.9.17
Commencement Date: S. 50 on 1.4.18: Special Gazette (No. 136) 27.3.18 p. 3
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Corrections Legislation Further Amendment Act 2017, No. 64/2017

Assent Date: 19.12.17
Commencement Date: S. 28 on 20.12.17: s. 2(1)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Act 1977
No. 9008 of 1977
Endnotes

Crimes Legislation Amendment (Protection of Emergency Workers and Others) Act 2017, No. 65/2017

Assent Date: 19.12.17
Commencement Date: S. 20 on 5.4.18: Special Gazette (No. 136) 27.3.18
p. 1; ss 21, 22 on 21.5.18: Special Gazette (No. 218) 15.5.18 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Amendment (Stage Two) Act 2018, No. 3/2018

Assent Date: 27.2.18
Commencement Date: S. 28 on 5.4.18: Special Gazette (No. 136) 27.3.18
p. 1, ss 3–24 on 1.7.18: Special Gazette (No. 218) 15.5.18 p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Oaths and Affirmations Act 2018, No. 6/2018

Assent Date: 27.2.18
Commencement Date: S. 68(Sch. 2 item 13) on 1.3.19: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Serious Offenders Act 2018, No. 27/2018

Assent Date: 26.6.18
Commencement Date: S. 352 on 3.9.18: Special Gazette (No. 356) 31.7.18
p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Justice Legislation Amendment (Terrorism) Act 2018, No. 32/2018

Assent Date: 7.8.18
Commencement Date: Ss 80–99 on 1.10.18: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Justice Legislation Amendment (Police and Other Matters) Act 2019, No. 3/2019

Assent Date: 13.3.19
Commencement Date: Ss 6, 19 on 5.6.19: Special Gazette (No. 215) 4.6.19
p. 1
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

COVID-19 Omnibus (Emergency Measures) Act 2020, No. 11/2020

Assent Date: 24.4.20
Commencement Date: S. 24 on 25.4.20: s. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Act 1977
No. 9008 of 1977
Endnotes

Crimes Amendment (Manslaughter and Related Offences) Act 2020, No. 16/2020

Assent Date: 10.6.20
Commencement Date: S. 10 on 1.7.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

COVID-19 Omnibus (Emergency Measures) and Other Acts Amendment Act 2020, No. 27/2020

Assent Date: 20.10.20
Commencement Date: S. 19 on 21.10.20: s. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Summary Offences Amendment (Decriminalisation of Public Drunkenness) Act 2021, No. 6/2021 (as amended by No. 35/2022)

Assent Date: 2.3.21
Commencement Date: S. 12 on 7.11.23: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Justice Legislation Amendment (System Enhancements and Other Matters) Act 2021, No. 11/2021

Assent Date: 23.3.21
Commencement Date: Ss 24–29 on 26.4.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Statute Law Amendment (References to the Sovereign) Act 2023, No. 25/2023

Assent Date: 5.9.23
Commencement Date: S. 7(Sch. 1 item 4) on 6.9.23: s. 2
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Bail Amendment Act 2023, No. 28/2023

Assent Date: 24.10.23
Commencement Date: Ss 4–15, 24–63, 71–116A, 119 on 25.3.24: s. 2(2)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

Youth Justice Act 2024, No. 32/2024

Assent Date: 10.9.24
Commencement Date: Ss 903D–904 on 11.9.24: s. 2(1AA); ss 903A–903C on 2.12.24: s. 2(1A)
Current State: This information relates only to the provision/s amending the **Bail Act 1977**

3 Explanatory details

¹ S. 4:

S. 4 amended by Nos 9158 s. 2, 9690 s. 2, 10002 s. 8(3), 10084 s. 18(1)(a), 10087 s. 3(1)(Sch. 1 item 4), 16/1986 s. 30, 89/1986 s. 4(c)–(e), 16/1987 s. 12(Sch. 2 item 3(a)), 19/1989 s. 16(Sch. item 7.2), 51/1989 s. 142(c)(d), 57/1989 s. 4(1)(a)(b), 95/1994 s. 7, 48/1997 s. 48, 84/1997 s. 4, 64/1998 s. 5, 61/2001 s. 13(1)(2), 35/2002 s. 28(Sch. item 1), 10/2003 s. 10, 20/2004 s. 10, 93/2005 s. 13, 52/2008 s. 233, 68/2008 s. 63, 68/2009 s. 97(Sch. item 11.1), 53/2010 s. 221(Sch. item 1), 70/2010 s. 7, 83/2012 s. 31(1), 63/2014 s. 7(1)(2), 52/2015 s. 40, 1/2016 ss 4, 5, 7, 50/2016 s. 7, 26/2017 ss 5, 16(2), 65/2017 s. 20, substituted by No. 3/2018 s. 7.

² S. 5(3): The amendments proposed by section 286(Sch. 2 item 2.3) of the **Children and Young Persons Act 1989**, No. 56/1989 are not included in this publication because section 5(3) was repealed by the **Community Services Act 1987**, No. 16/1987.

³ S. 24(3)(a): The amendment proposed by section 103(3)(b)(iii) of the **Bail Amendment Act 2023**, No. 28/2023 is not included in this publication because the words "original undertaking or a new undertaking" do not appear in section 24(3)(a).

Section 103(3)(b)(iii) reads as follows:

103 Arrest of person released on bail

(3) In section 24(3) of the Principal Act—

(b) in paragraph (a)—

(iii) for "original undertaking or a new undertaking" **substitute** "original bail undertaking or on a new bail undertaking";